

ELIZABETH II



Licensing (Scotland) Act 1976

1976 CHAPTER 66

An Act to make provision as respects the licensing law of Scotland; and for connected purposes.

[15th November 1976]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

LICENSING BOARDS

1.—(1) For the administration of licensing with respect to ^{Licensing} alcoholic liquor on and after 1st July 1977, Scotland shall have ^{boards.} licensing boards constituted in accordance with the provisions of this section.

(2) There shall be a separate licensing board for—

- (a) each district and islands area which is not divided into licensing divisions under subsection (3) below, and
- (b) each licensing division.

(3) The council of any district or islands area may from time to time determine whether the district or area shall be divided into licensing divisions for the purposes of this Act, and such a council shall, on making a determination under this subsection, forthwith notify the Secretary of State of such determination and cause notice thereof to be published in two successive weeks in one or more newspapers circulating in the district or area.

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(4) Subject to subsection (9) and (13) below, a licensing board shall consist of not less than one-quarter of the total number of members of the district or islands council and in no case shall consist of less than five such members.

(5) Where a district or islands area is divided into licensing divisions, then unless the Secretary of State otherwise directs, not less than one-third of the members of the licensing board for a licensing division shall be councillors for a ward or electoral division within the area of the licensing division.

(6) The members of a licensing board for a district or licensing division of a district shall be elected at the first meeting of the district council held after the ordinary election of that council in 1977 and, in the case of subsequent elections, at the first meeting of the council held after each subsequent ordinary election of the council.

(7) The members of a licensing board for an islands area or licensing division of an islands area shall be elected at a meeting of the council of the islands area to be held on a date between 16th May 1977 and 30th June 1977 to be determined by the council, and, in the case of subsequent elections, at the first meeting of the council held after each subsequent ordinary election of the council.

(8) The term of office of members of a licensing board shall begin with the day of their election under subsections (6) and (7) above and shall end on the day of the next election of members of the licensing board, but any member of a board shall be eligible for re-election.

(9) A member of a licensing board who has ceased to be a member of the authority by whom he was appointed by reason of an ordinary election to the council of that authority shall continue to be a member of the board until the first meeting of the council after the election.

(10) Any casual vacancy arising in a licensing board from death, resignation, disqualification or other cause may be filled by the election of a duly qualified person at the first meeting of the appointing council following upon the vacancy, and members so elected shall hold office until the date of the next meeting for election to the board.

(11) If a licensing board is not elected at the time at which it ought to be elected, or an insufficient number of members is elected for a board, the Secretary of State may by order provide for the holding of a fresh election or elections for supplying such fault or deficiency in election at such times and in such manner as he may think expedient.

(12) No election held in pursuance of this Act shall be deemed to be vitiated in consequence of any technical defect in the proceedings which has not been prejudicial to the interests of any party concerned in such election.

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(13) For the purposes of any proceedings at the quarterly meeting in March in the final year of office of members of a licensing board which are not finally disposed of before the expiry in that year of the term of office of the members, the members of the licensing board in office at the date of the said meeting shall, notwithstanding such expiry, be deemed to constitute the licensing board.

2.—(1) A person who is, or who is in partnership with any person as, a brewer, maltster, distiller, or dealer in or retailer of alcoholic liquor, shall not act as a member of a licensing board for any purpose under this Act. Disqualification of interested persons.

(2) A member of a licensing board who holds a disqualifying interest in a company shall not take part in any proceedings before the board in which that company is an applicant or an objector, and in this subsection "disqualifying interest" means a beneficial interest in shares or stock of a close company within the meaning of section 282 of the Income and Corporation Taxes Act 1970 which have a total nominal value exceeding £50 or which amount to more than one hundredth part of the nominal value of the issued share capital, or stock, as the case may be, of the company or any class of such capital or stock. 1970 c. 10.

(3) A person who is an employee of a holder of a licence under this Act and any other person engaged in a business which deals in alcoholic liquor, including directors, officers and employees of companies so engaged shall not act as a member of a licensing board for any purpose under this Act.

(4) A member of a licensing board shall not act in the granting of a licence in respect of premises of which he is the proprietor, tenant or sub-tenant.

(5) If any person knowingly and wilfully contravenes this section, he shall be guilty of an offence.

(6) Anything done by any person in contravention of this section shall be void:

Provided that the grant of a new licence under this Act shall not be liable to objection on the ground that the members of the licensing board, or any of them, were not qualified to grant a licence.

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(7) A person shall not be disqualified from acting as a member of a licensing board in relation to any matter by reason only that as a member of a committee constituted under section 47 of this Act he was concerned with the matter in question.

Expenses of
members of
licensing
boards.
1973 c. 65.

3.—(1) Sections 45 to 50 of the Local Government (Scotland) Act 1973 (which provide for payment of allowances to members of local authorities and other bodies) shall apply with any necessary modifications to members of licensing boards as if the licensing boards were local authorities.

(2) Any amounts by way of allowance payable by virtue of subsection (1) above shall be payable by the council of the district or islands area whose area constitutes or includes the area of the licensing board.

Meetings of
licensing
boards.

4.—(1) For the purposes of the discharge of its functions under this Act, every licensing board

(a) shall hold a meeting in January, March, June and October of each year beginning on a date in each such month fixed by the licensing board at least eight weeks prior to the meeting ;

(b) may hold such other meetings as appear to the board to be appropriate.

(2) A licensing board may adjourn any meeting held by virtue of subsection (1) above from time to time during the period of one month next following the first day of such meeting, but no longer.

Arrangements
for discharge
of functions of
licensing
boards.

5.—(1) Subject to subsection (2) below, a licensing board may arrange for the discharge of any of its functions by a committee of the board, a member or members of the board, the clerk of the board or any other person appointed to assist the clerk.

(2) A licensing board shall not make any arrangements under subsection (1) above for the discharge of any of the following functions—

(a) making a decision on the application for the grant, including the provisional grant, of a new licence ;

(b) making a decision on an application for the renewal of a licence where a competent objection has been lodged ;

(c) making a decision to refuse to grant the renewal of a licence ;

(d) making a decision on the permanent transfer of a licence ;

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- (e) making a decision on an application for a regular extension of permitted hours ;
- (f) making a decision on the restriction of the terminal permitted hour ;
- (g) making a decision on an application for restoration of restricted hours ;
- (h) making a decision on an application for Sunday opening under Part I of Schedule 4 to this Act other than an application under paragraph 13 of that Schedule where no objection is made in relation to the application ;
- (i) making a decision as regards a Sunday restriction order or the revocation of such an order under Part II of Schedule 4 to this Act ;
- (j) making a decision on the suspension of a licence ;
- (k) making a decision on a closure order.

(3) One half of the members of a licensing board (and in no case less than three members) shall be a quorum for any meeting of the board to discharge functions mentioned in subsection (2) above.

(4) The chairman of a licensing board or, in his absence, the clerk of the board may, if a quorum is not present for any such meeting of the board, call a further meeting in place of the meeting not held.

(5) A licensing board may, at any such meeting of the board, act notwithstanding any vacancy, if a quorum is present.

(6) A licensing board may only deal with any proceedings relating to matters mentioned in paragraphs (a) to (i) of subsection (2) above at a quarterly meeting of the board held by virtue of section 4(1)(a) of this Act.

(7) Proceedings relating to matters mentioned in subsection (2) above, including voting in connection therewith, shall be held in public, but a licensing board may retire to consider its decision in any such matter and the clerk of the board shall accompany the board when it so retires unless the board otherwise directs.

(8) The district or islands council concerned shall provide accommodation for the meetings, and otherwise defray any necessary expenses in respect of the proceedings of the licensing boards for their area.

6.—(1) Every licensing board shall elect annually one of its number to be chairman of the board, and until a chairman is elected, or if the chairman is absent from any meeting, the board shall elect one of its number present at the meeting to be chairman of that meeting.

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(2) Where on the election of a chairman an equal number of votes is given for two or more persons, the meeting shall determine by lot which of those persons shall be the chairman.

(3) Subject to subsection (2) above, at any meeting of a licensing board the chairman shall, in a case of equality in voting, have a second or casting vote:

Provided that at a meeting of a licensing board the chairman shall not have a second or casting vote on an application for the grant or provisional grant of a new licence, and such an application shall be granted by the board only by a majority of the members thereof present and voting.

Clerk of
licensing
boards.

7.—(1) Every district and islands council shall appoint and employ, whether on a full-time or part-time basis—

(a) an officer to be the clerk of every licensing board having jurisdiction within their area, and

(b) such other persons as may be necessary to assist that officer or to act on his behalf as clerk or assistant clerk of those boards

and the clerk of a licensing board shall be an advocate or a solicitor.

(2) Where under an agreement an officer of a regional council is placed at the disposal of a district council for the purposes of this section, that officer may perform the duties of clerk or assistant clerk of the aforementioned boards.

(3) The clerk of a licensing board shall not, himself or by his partner or clerk, act as solicitor to, or agent for, any person in any proceedings before that board or in any appellate proceedings which may result therefrom and, if any person contravenes this subsection, he shall be guilty of an offence.

Fees payable.

8.—(1) The Secretary of State may, by order made by statutory instrument, determine the fees payable by any applicant to a licensing board.

(2) The fees mentioned in subsection (1) above shall not include fees payable under the provisions of the Betting, Gaming and Lotteries Acts 1963 to 1971 or of the Gaming Act 1968.

1968 c. 65.

(3) Fees determined by the Secretary of State under subsection (1) above shall, on being paid by any applicant to the board, be paid over by the clerk of that board to the council which defray the expenses of that board.

PART II**THE GENERAL LICENSING SYSTEM**

Grant of
licences by
licensing
boards.

9.—(1) A licensing board may, in accordance with the provisions of this Part of this Act, grant a licence to any person for the sale by retail or supply of alcoholic liquor by that person.

(2) A licence so granted by a licensing board shall be in respect of premises specified therein, being premises situated within the area of the board.

(3) The types of licence which may be so granted by a licensing board are those specified in Schedule 1 to this Act.

(4) A licence granted by a licensing board shall be in such form as the board may decide.

(5) A licence granted otherwise than at a properly constituted meeting of a licensing board or otherwise than in accordance with the provisions of this Act shall be void.

10.—(1) An application to a licensing board of any kind mentioned in subsection (6) below in respect of any premises shall be in such form as may be prescribed, shall be completed and signed by the applicant or his agent, and shall be lodged with the clerk of the licensing board within whose area the premises are situated not later than five weeks before the first day of the meeting of the board at which the application is to be considered. Application for licence.

(2) In the case of an application for the grant of a new licence, the applicant shall—

- (a) along with his application, lodge with the clerk of the board a plan of the premises in respect of which the application is made; and
- (b) arrange for the display at the premises, in a place and at a height where it can conveniently be read by the public, of a notice in the prescribed form intimating his application and the type of licence for which he applies, for a period of at least 21 days before the first day of the meeting as aforesaid.

Paragraph (a) of this subsection shall not apply to an application for the grant of an off-sale licence.

(3) In the case of an application for the provisional grant of a new licence, the applicant shall—

- (a) along with his application, lodge with the clerk of the board a plan of the premises in respect of which the application is made; and
- (b) arrange for the display at the site of the premises of a notice all as mentioned in subsection (2) (b) above.

(4) An applicant shall not be treated as having failed to comply with subsection (2)(b) or (3)(b) above if the notice is, without any fault or intention of his, removed, obscured or defaced before the first day of the meeting of the board at which the application is to be considered, so long as he has taken reasonable steps for its protection and, if need be, replacement.

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(5) In the case of an application for the grant or provisional grant of a new licence, the applicant shall, not later than three weeks before the first day of the meeting of the board at which the application is to be considered, give notice in writing of the application to every occupier of premises situated in the same building as the premises to which the application relates.

(6) The applications referred to in subsection (1) above are as follows—

- (a) an application for the grant or renewal of a licence ;
- (b) an application for the provisional grant of a new licence ;
- (c) an application for a permanent transfer of a licence ;
- (d) an application for a regular extension of permitted hours.

(7) On receipt of an application of a kind referred to in subsection (6) above, and until the first day of the meeting of the board at which the application is to be considered, the clerk of a licensing board shall make the application, together with the documents lodged therewith, available for inspection by members of the public during normal office hours.

Special provisions for applications made other than by individual natural persons.

11.—(1) Where an application is made for a new licence, or for the renewal or permanent transfer of a licence, by an applicant who is not an individual natural person, the following provisions of this section shall apply.

(2) The application shall name both the applicant and the employee or agent of the applicant whom the applicant intends should have the responsibility for the day to day running of the premises to which the application relates.

(3) Where an application is granted, the licensing board shall grant the licence or transfer in the names of both persons mentioned in subsection (2) above, and any reference in this Act to the holder of a licence includes a reference to both of those persons.

(4) Unless a licence is transferred to another employee or agent within 8 weeks from the time when the employee or agent named in a licence ceases to be responsible for the day to day running of the premises to which the licence relates, the licence shall cease to have effect.

Publication of list of applications.

12.—(1) The clerk of a licensing board shall, in accordance with the provisions of this section, not later than three weeks before the first day of the meeting of the board at which the applications are to be considered, cause to be published in one or more newspapers circulating in the area of the board a list of all competent applications made to the board for—

- (a) the grant, including the provisional grant, of a new licence ;

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(b) the regular extension of permitted hours.

(2) In relation to each application for a new licence, the list mentioned in subsection (1) above shall specify—

- (a) the name, designation and address of the applicant ;
- (b) in the case of an application to which section 11 of this Act applies, the names, designations and addresses of both persons named in the application ;
- (c) the address of the premises in respect of which the licence is desired ;
- (d) the type of licence for which application is made ;
- (e) the first day of the meeting of the licensing board at which the application is to be considered.

(3) In relation to each application for the regular extension of permitted hours, the list mentioned in subsection (1) above shall specify—

- (a) the name, designation and address of the applicant ;
- (b) the address of the premises in respect of which the application is made and the type of licence held in respect of those premises ;
- (c) the nature of the extension of hours for which application is made ;
- (d) the first day of the meeting of the licensing board at which the application is to be considered.

13.—(1) A licensing board shall not at any meeting hear the cases of applicants for new licences until all the other cases have been disposed of: Consideration of applications.

Provided that where more than one application for a licence has been made in respect of any premises, the licensing board may hear and consider such applications together.

(2) Where an applicant for the grant of a licence or an objector thereto—

- (a) has, through inadvertence or misadventure, failed to comply with any of the preliminary requirements of this Act ; or
- (b) having duly lodged his application or objection, has died before the meeting of the board at which such application or objection was to have been heard ;

the board may, if it thinks fit, and upon such terms as the board thinks proper, postpone the consideration of the application or objection to an adjourned meeting.

(3) At such adjourned meeting the licensing board may, if it is satisfied that the terms specified by the board have been complied with—

- (a) proceed to grant the licence to the applicant or, as the case may be, to his executors, representatives or

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disponees (being possessed of the premises in respect of which the application has been made) ;

- (b) proceed to consider the objection, whether on the part of the objector or, in the case of a deceased objector, on the part of his representatives ; as if the preliminary requirements of this Act had been complied with.

Further application for new licence where previous application refused.

14. Where a licensing board has refused an application for a new licence in respect of any premises, the board shall not, within two years of its refusal, entertain a subsequent application for a new licence in respect of the same premises unless the board, at the time of refusing the first-mentioned application, makes a direction to the contrary.

Attendance at meeting of licensing board by applicant or his representative.

15.—(1) A licensing board may decline to consider an application if the applicant or his representative does not attend the meeting at which the application is to be considered :

Provided that an applicant for the renewal of a licence or for the permanent transfer of a licence need not attend or be represented unless the applicant has been cited by the board to attend the meeting.

(2) A licensing board shall not refuse an application for the renewal or permanent transfer of a licence without hearing the applicant or his representative :

Provided that the board may refuse such an application if the applicant, having been cited by the board to attend the meeting at which his application is to be considered, fails to attend such a meeting.

Objections in relation to applications.

16.—(1) It shall be competent for any of the following persons to object in relation to any application to a licensing board for the grant (including the provisional grant) renewal or permanent transfer of a licence, namely,—

- (a) any person owning or occupying property situated in the neighbourhood of the premises to which the application relates or any organisation which in the opinion of the board represents such persons ;
- (b) a community council, which has been established in accordance with the provisions of the Local Government (Scotland) Act 1973, for the area in which the premises are situated ;
- (c) any organised church which, in the opinion of the licensing board, represents a significant body of opinion among persons residing in the neighbourhood of the premises ;
- (d) the chief constable.

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(2) Where a competent objector desires to object in relation to any application, he shall, not later than seven days before the meeting of the licensing board at which the application is to be considered—

- (a) lodge with the clerk of the board a written notice of objection which shall be signed by the objector or his agent and shall specify the grounds of his objection and
- (b) intimate his objection to the applicant in the manner provided by subsection (3) below,

and an objection shall not be entertained by the licensing board unless it is proved or admitted that such objection was intimated to the applicant as aforesaid.

(3) An objection shall, for the purposes of paragraph (b) of subsection (2) above, be intimated to the applicant—

- (a) by delivering to him a copy of the notice of objection lodged with the licensing board under paragraph (a) of that subsection ; or
- (b) by sending a copy of the said notice by registered post or by recorded delivery in a letter addressed to him at his proper address ; or
- (c) by leaving a copy of the said notice for him at his proper address ;

and, for the purposes of paragraphs (b) and (c) of this subsection, the proper address in the case of an applicant being an individual natural person shall be his place of abode as specified in his application or, in the case of such an applicant applying for the renewal of a licence, the premises in respect of which the application is made, and, in the case of an applicant other than an individual natural person, shall be the address specified in the application.

(4) Notwithstanding anything in the foregoing provisions of this section, it shall be competent for a licensing board to entertain objections from the chief constable, lodged at any time before the hearing of an application, if the board is satisfied that there is sufficient reason why due notice and intimation of the objection could not be given, and in such a case the chief constable shall cause his objections to be intimated to the applicant before the hearing.

(5) The licensing board may only entertain an objection under this section if the objection is relevant to one or more of the grounds on which, by virtue of section 17 of this Act, an application may be refused, and shall hear any competent objection before arriving at its decision.

(6) The licensing board, if in its opinion any objection to the renewal of a licence is frivolous or vexatious, may find the objector liable in the expenses caused by such objection to

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such extent as the board thinks fit, or, if in its opinion any such objection is unauthorised, may find the agent of the objector liable in the expenses as aforesaid; and the amount of any expenses so found due may be recovered in the sheriff court having jurisdiction, and a certified copy of the finding of the licensing board shall be sufficient evidence and authority for decerning for the said amount with expenses.

Grounds for
refusal of
application.

17.—(1) A licensing board shall refuse an application of the type described in subsection (2) below if it finds that one or more of the following grounds for refusal, being competent grounds, applies to it—

- (a) that the applicant, or the person on whose behalf or for whose benefit the applicant will manage the premises or, in the case of an application to which section 11 of this Act applies, the applicant or the employee or agent named in the application is not a fit and proper person to be the holder of a licence;
- (b) that the premises to which an application relates are not suitable or convenient for the sale of alcoholic liquor, having regard to their location, their character and condition, the nature and extent of the proposed use of the premises, and the persons likely to resort to the premises;
- (c) that the use of the premises for the sale of alcoholic liquor is likely to cause undue public nuisance, or a threat to public order and safety;
- (d) that, having regard to the facilities of the same or similar kind already available in the locality, or to facilities of the same or similar kind, in respect of which the provisional grant of a new licence is in force, which are to be provided in the locality, the grant of an application would result in the over-provision of such facilities;

and otherwise shall grant the application.

(2) The grounds on which different types of application may competently be refused by a licensing board are those mentioned opposite the respective types of application set out below—

<i>Type of application</i>	<i>Competent grounds</i>
new licence, including the provisional grant of such a licence	those set out in subsection (1) above.
renewal of licence	those set out in paragraphs (a) to (c) of subsection (1) above.
permanent transfer of a licence	that set out in paragraph (a) of subsection (1) above.

(3) In considering the grounds for refusal mentioned in paragraph (a) of subsection (1) above, the licensing board may have regard to any misconduct on the part of any person mentioned in that paragraph, whether or not constituting a breach of this Act or any byelaw made thereunder, which in the opinion of the board has a bearing on his fitness to hold a licence.

(4) An applicant for the grant of a new licence, including the provisional grant of such a licence, or for the renewal or permanent transfer of a licence may appeal to the sheriff against a refusal of a licensing board to grant, renew or transfer the licence, as the case may be.

(5) Any competent objector who appeared at the hearing of any application mentioned in subsection (4) above may appeal to the sheriff against the decision of the licensing board to grant, renew or transfer a licence, as the case may be.

(6) Any person entitled under this section to appeal to the sheriff against the grant or refusal of a licence may appeal to the sheriff against a decision of a licensing board to attach or not to attach a condition to a licence, being a condition mentioned in section 38(3) or 101(2) of this Act.

18.—(1) A licensing board shall give reasons for arriving at any decisions mentioned in section 5(2) of this Act when required to do so under subsection (2) below.

Giving of reasons for decisions of a licensing board.

(2) Reasons for decisions referred to in subsection (1) above may be required to be given by the board in writing on a request being made to the clerk of the board, not more than 48 hours after the decision is made, by the applicant or, as the case may be, by the holder of the licence, or by any objector, or by any complainer who appeared at the hearing.

(3) Where a licensing board gives reasons in writing at the request of a party to the hearing, the board shall give copies of those reasons to all other parties to the hearing.

(4) The period of 48 hours referred to in subsection (2) above shall not include a day which is a Sunday, Christmas Day, New Year's Day, Good Friday, a bank holiday, or a public holiday, or a day appointed for public thanksgiving or mourning.

19.—(1) If any applicant for the grant, renewal, or permanent transfer of a licence or for a regular extension of permitted hours, either by himself or by another person at the instigation of the applicant, attempts to influence a member of a licensing board to support his application at any time before its consideration by the board, he shall be guilty of an offence.

Canvassing.

(2) If proceedings are pending under subsection (1) above, the licensing board may adjourn consideration of an application to which the proceedings relate until the proceedings are concluded.

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(3) If an applicant is convicted of an offence under subsection (1) above in relation to an application before the board, the board may refuse to consider the application.

Register of applications and decisions.

20. The clerk of each licensing board shall keep a register of applications for licences and shall, at the end of each day's meeting of the board, enter in the register the decisions taken on the applications.

This register shall be available to any member of the public at times and places to be determined by the clerk.

Issue of licences.

21.—(1) The clerk of each licensing board shall make out and deliver a licence to every person to whom a licence is granted by the board.

(2) The clerk of a licensing board shall, when lawfully required, make out a duplicate of any licence issued by him under this section and shall certify such duplicate to be a true copy of the original licence, and any such duplicate, duly certified as aforesaid, shall be sufficient evidence of the facts therein contained and of the terms of the original licence.

List of licence holders to be sent to Customs and Excise.

22. The clerk of each licensing board shall, within 14 days after a meeting at which licences were granted, renewed or transferred, send to the Collector of Customs and Excise for any collection which, or any part of which, is situated in the area of the board, a list of the persons who have obtained licences at the said meeting, being licences in respect of premises situated in the said collection, and such list shall be in the same form as the register kept by the clerk under section 20 of this Act, shall be completed in accordance with the decisions entered in the register, and shall be signed by the clerk.

Special provisions relating to applications for new licence.

23.—(1) Subject to subsection (6) of this section, an application for the grant or provisional grant of a new licence (other than an off-sale licence) shall not be entertained by a licensing board unless there are produced to the board, in accordance with the provisions of this section, certificates from the appropriate authority as to the suitability of the premises for which the licence is sought in relation to planning, building control and food hygiene.

(2) In relation to planning, the certificate from the appropriate authority should state that the applicant has obtained in respect of the premises planning permission under the Town and Country Planning (Scotland) Act 1972 or, in the case of an application for the provisional grant of a licence, outline planning permission under sections 39 and 40 of that Act, or, in either case, a determination under section 51 of that Act that planning permission is not required.

(3) In relation to building control, the certificate from the appropriate authority— PART II

(a) in the case of an application for a new licence, should state—

(i) either that a warrant for the construction of the premises has been granted under section 6 of the Building (Scotland) Act 1959 and a certificate of completion has been granted under section 9 of that Act, or that no warrant for construction of the premises is required ; and

(ii) either that a warrant for the change of use of the premises has been granted under the said section 6 or that no such warrant is required ; and

(b) in the case of an application for the provisional grant of a licence, should state—

(i) that a warrant for the construction of the premises has been granted under section 6 of the said Act of 1959 ; and

(ii) either that a warrant for the change of use of the premises has been granted under the said section 6, or that on completion of the construction of the premises in accordance with the warrant a warrant for the change of use will be granted, or that no such warrant is required.

Expressions used in this subsection and in the said Act of 1959 have the same meanings in this subsection as they have in that Act.

(4) In relation to food hygiene, the certificate from the appropriate authority should, in the case of an application for a new licence, state that the premises to which the application relates comply, or, in the case of an application for the provisional grant of a licence, would comply, with the requirements of regulations made under section 13 of the Food and Drugs (Scotland) Act 1956 relating to construction, layout, drainage, ventilation, lighting and water supply or concerned with the provision of sanitary and washing facilities. 1956 c. 30.

(5) Before granting or making the provisional grant of a new licence, the licensing board shall consult the fire authority for the area.

(6) In relation to building control, food hygiene and consultation with the fire authority, subsections (1), (3), (4) and (5) of this section shall not apply to the application for or the making of a provisional grant of a licence under section 26(2) of this Act but shall apply to the application for affirmation and to the affirmation of such a grant.

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(7) In this section, in relation to planning and building control, the appropriate authority in the case of the Highland, Borders and Dumfries and Galloway Regions is the regional council and, in any other case, is the district or islands council, and in relation to food hygiene, the appropriate authority is the district or islands council.

Special provisions relating to applications for renewal of a licence.

24.—(1) Before granting the renewal of a licence, the licensing board shall consult the fire authority for the area.

(2) On any application for the renewal of a licence, the licensing board may require a plan of the premises to which the application relates to be produced to it and lodged with the clerk.

Transfer of licences.

25.—(1) A licensing board may, on an application made to the board in that behalf, transfer to a new tenant or occupant of any licensed premises the licence then subsisting in respect of those premises.

(2) A licensing board may, on an application made to it in that behalf by—

(a) the executors, representatives or disponees of any person who held a licence in respect of premises situated within the area of the board and who has died before the expiry of the licence ; or

(b) the trustee, judicial factor or curator bonis of any person holding such a licence who has become bankrupt, insolvent or incapable before the expiry of the licence ;

transfer the licence to the applicant if the applicant is in possession of the premises.

(3) A licensing board may, on an application made to it in that behalf by a person other than an individual natural person, substitute another employee or agent of the applicant for the employee or agent mentioned in section 11 or 26 of this Act.

(4) A licence transferred by virtue of subsection (2) or (3) above shall have effect until the next meeting of the licensing board and, if not renewed at that meeting, shall have effect until the time within which an appeal may be made has elapsed or, if an appeal has been lodged, until the appeal has been abandoned or determined.

(5) Where a licence is transferred under this section to any person, the clerk of the licensing board shall, on payment of the appropriate fee, endorse on the licence a note of the transfer.

(6) Any licence transferred under this section shall be held subject to the conditions on which it was originally granted.

PART II

(7) A transfer of a licence under subsection (1) above is in this Act referred to as a permanent transfer.

26.—(1) A licensing board may, on an application in that behalf made to the board by any person interested in premises about to be constructed or in course of construction for use as licensed premises, make a provisional grant of a licence in respect of those premises if the board is satisfied—

Provisional grant of licence.

- (a) that the premises will be fit and convenient for their purpose, and
- (b) that, if the premises had been completed in accordance with the plan thereof lodged with the board in pursuance of section 10 of this Act, the board would on application have granted such a licence in respect thereof.

(2) If on an application under this section the applicant lodges with the board, instead of the plan mentioned in paragraph (b) of subsection (1) above, a plan sufficient to identify the site of the premises, together with such description of the premises as will give a general indication of their proposed size and character (with reference in particular to the sale of alcoholic liquor), then—

- (a) the licensing board shall deal with the application as if made under subsection (1) above ; but
- (b) any provisional grant of a licence made on an application under this subsection shall become ineffective unless affirmed by the licensing board on application made to the board to that effect within 12 months of the provisional grant of the licence, any such application being accompanied by a plan of the premises.

(3) A licensing board may consider any application made to it under paragraph (b) of subsection (2) above at any meeting of the board held not earlier than 14 days after the making of the application and shall affirm the provisional grant if the board is satisfied that the premises, if completed in accordance with the plan mentioned in that paragraph, will be fit and convenient for their purpose and that the said plan does not deviate materially from the site plan and description of the premises lodged under the said subsection (2).

(4) A licence of which a provisional grant has been made as aforesaid shall not come into force until such grant is declared final by the licensing board, and subject to subsection (6) below.

PART II the board shall, on being so requested, declare the grant final if it is satisfied either—

- (a) that the premises in respect of which the grant was made have been completed in accordance with the plan thereof lodged with the board, or
- (b) that the premises have been completed and that such deviations from the said plan as exist are of minor importance and have not materially altered the character of the premises or the facilities for the supply of alcoholic liquor thereat.

(5) A licensing board shall not entertain a request to declare the provisional grant of a licence final unless the person to whom the grant was made has given to the board such notice of his intention to make the request as may be prescribed.

(6) In the case of a request by a person other than an individual natural person that the licensing board shall declare the provisional grant of a licence final, that person shall include in the notice mentioned in subsection (5) above the name of the employee or agent whom it is intended should have the day to day running of the premises, and the board shall not declare the provisional grant final if it finds that the employee or agent so named in the notice is not a fit and proper person to be the holder of a licence.

(7) Where a licensing board declares a provisional grant final in such a case as is described in subsection (6) above, the licence shall be in the names of both persons mentioned in that subsection, and any reference in this Act to the holder of a licence includes a reference to both of those persons.

(8) Until the date of the first renewal of licences provisionally granted under subsection (1) or (2) above after those licences have been declared final, subsections (2) to (5) of section 30 of this Act shall have effect in relation to those licences with the substitution in subsection (3) of section 30 of a reference to one year instead of the reference to three years.

(9) A licensing board may refuse to renew a licence provisionally granted under subsection (1) or (2) above if the board considers that there has been unreasonable delay on the part of the applicant in completing the premises.

(10) An applicant may appeal to the sheriff against a decision of a licensing board to refuse to affirm a licence under subsection (2) above or to refuse to declare a provisional grant of a licence final under subsection (4) above.

27. A licensing board may grant a provisional licence to the holder of any licence to enable him to carry on business in temporary premises during the reconstruction of his premises.

PART II
Grant of
provisional
licence.

28.—(1) Premises shall be disqualified for receiving a licence if they are situated on land acquired or appropriated by a special road authority, and for the time being used, for the provision of facilities to be used in connection with the use of a special road provided for the use of traffic of class 1 (with or without other classes).

Licence not to
be granted for
premises on
special roads.

(2) For the purposes of this section—

- (a) “special road” and “special road authority” have the same meanings as in the Special Roads Act 1949, and 1949 c. 32.
- (b) “class 1” means class 1 in Schedule 2 to that Act, as varied from time to time by any order under section 2 of that Act, but, if that Schedule is amended by such an order so as to add to it a further class of traffic, the order may adapt the reference in this section to traffic of Class 1 so as to take account of the additional class.

29.—(1) A licence granted under this Act by a licensing board shall authorise the holder thereof to sell by retail spirits, wine, made-wine, porter, ale, beer, cider, perry, and any other alcoholic liquor:

Alcoholic
liquor which
may be sold
under licence.

Provided that the licensing board may, when granting a licence or an application for an extension of the permitted hours, restrict the alcoholic liquor which may be sold thereunder to wine, made-wine, porter, ale, beer, cider and perry.

(2) Where by virtue of a decision of a licensing board under the proviso to subsection (1) above only alcoholic liquor other than spirits may be sold, it shall be an offence for the licenceholder or his employee or agent to sell spirits.

30.—(1) A new licence shall come into effect on being granted by a licensing board, except that where there were objections at the hearing the licence shall not come into effect until—

Currency of
licence.

- (a) the time within which an appeal may be made has elapsed, or
- (b) where an appeal has been lodged, the appeal has been abandoned or determined in favour of the applicant for the licence.

(2) A renewed licence shall come into effect on being renewed by a licensing board.

PART II

(3) A licence shall have effect in accordance with the following provisions of this section until the quarterly meeting of the licensing board three years after the meeting at which the licence was granted or renewed by a licensing board.

(4) Subject to section 13(2) of this Act, if no application is made for the renewal of a licence at the quarterly meeting mentioned in subsection (3) above, the licence shall expire on the first day of that meeting.

(5) If an application is made for the renewal of a licence, the licence in respect of which the application is made shall continue to have effect—

- (a) until the application for renewal is granted by the board ;
- (b) if the application for renewal is refused, until the time within which an appeal may be made has elapsed or, if an appeal has been lodged, until the appeal has been abandoned or determined.

Suspension of
licence on
receipt of
complaint.

31.—(1) Where on a complaint being made to a licensing board by any person or body mentioned in section 16(1) of this Act the board is satisfied that it is in the public interest to do so, it may, in accordance with the provisions of this section, suspend a licence.

(2) A licensing board may order the suspension of a licence on one or both of the following grounds—

- (a) that the licence-holder is no longer a fit and proper person to be the holder of a licence ;
- (b) that the use of the premises in respect of which the licence is held has caused undue public nuisance or a threat to public order or safety.

(3) In considering a complaint under this section, the licensing board may have regard to—

- (a) any misconduct on the part of the holder of the licence, whether or not constituting a breach of this Act or any byelaw made thereunder, which in the opinion of the board has a bearing on his fitness to hold a licence ;
- (b) any misconduct on the part of persons frequenting licensed premises occurring in those premises or any misconduct in the immediate vicinity of licensed premises which is attributable to persons frequenting those premises.

(4) On receipt of a complaint under this section, the licensing board shall decide whether or not to hold a hearing on the issue and shall inform the complainer of the board's decision in the matter.

(5) Where the licensing board decides to hold a hearing as mentioned in subsection (4) above—

- (a) the clerk of the board shall serve on the holder of the licence, not less than 21 days before the hearing, a notice that the board proposes to hold a hearing, specifying the complaint and the grounds upon which suspension of the licence is sought ;
- (b) the clerk of the board shall give notice of the hearing to the complainer ;
- (c) any person or body mentioned in section 16(1) of this Act may, not less than 7 days before the hearing, lodge notice with the clerk of the board that he or it wishes to be heard in support of suspension of the licence specifying the grounds on which he or it seeks such suspension, and any such notice shall be intimated by such person to the holder of the licence ;
- (d) the board shall not order suspension of a licence without hearing the holder thereof unless after receiving due notice of the hearing the holder fails to appear.

(6) Where a licensing board decides to order the suspension of a licence, the suspension shall not take effect until the expiry of the time within which the holder of the licence may appeal to the sheriff, or, if the holder appeals to the sheriff or thereafter to the Court of Session, until the appeal has been determined in favour of the suspension or has been abandoned.

(7) The period of the suspension of a licence under this section shall be a fixed period not exceeding one year or the unexpired portion of the duration of the licence, whichever is the less, and the effect of the suspension is that the licence shall cease to have effect during the period of the suspension.

(8) The holder of the licence may appeal to the sheriff against any order of a licensing board under this section, including the period of suspension mentioned in the order.

32.—(1) Where a licensing board considers that licensed premises are no longer suitable or convenient for the sale of alcoholic liquor, having regard to their character and condition, and the nature and extent of the use of the premises, the board may decide to hold a hearing with a view to making a closure order under this section, and the effect of a closure order is that the licence held in respect of the premises shall cease to have effect while the closure order is in force.

Other power
to suspend
licence.

(2) Where the licensing board decides to hold a hearing as mentioned in subsection (1) above—

- (a) the clerk of the board shall serve on the holder of the licence, not less than 21 days before the hearing, a

PART II

notice that the board proposes to hold the hearing specifying the grounds on which the board proposes to hold the hearing ;

- (b) the board shall not make a closure order without hearing the holder of the licence unless, after receiving due notice of the hearing, the holder fails to appear.

(3) Where after a hearing under this section a licensing board is satisfied as to any one or more of the matters mentioned in subsection (1) above, the board may order the closure of the licensed premises and any such order shall specify the matters on which the order is based.

(4) The closure order shall remain in force until such time as the board is satisfied that the matters which led to the closure order have been satisfactorily remedied.

(5) The licence-holder may apply to the board for the cancellation of the closure order on the ground that the matters which led to the closure order have been satisfactorily remedied.

(6) Where a licensing board decides to make a closure order under this section, the order shall not take effect until the expiry of the time within which the holder of the licence may appeal to the sheriff, or, if the holder appeals to the sheriff or thereafter to the Court of Session, until the appeal has been determined in favour of the closure order or has been abandoned.

(7) The holder of the licence may appeal to the sheriff against the closure order or against a refusal of a licensing board to cancel a closure order.

Occasional
licence for
premises other
than licensed
premises or
clubs.

33.—(1) A licensing board may grant an occasional licence to the holder of a licence authorising him to sell alcoholic liquor, during such hours and on such day as the board may determine, in the course of catering for an event taking place outwith the licensed premises in respect of which he is the holder of a licence.

(2) A licensing board may grant an occasional licence to a registered club authorising the club to sell alcoholic liquor, during such hours and on such day as the board may determine, at an event held outwith the premises of the club if the event arises from or relates to the functions of the club.

(3) In granting an occasional licence under this section, which shall be in writing, the licensing board may impose such conditions as it thinks fit including a condition as to the type of alcoholic liquor which may be sold under the licence, and an occasional licence granted to the holder of a restricted hotel licence or a restaurant licence shall be subject to a condition that the sale of alcoholic liquor under the authority of the licence shall be ancillary to the provision of substantial refreshment.

PART II

(4) If the holder of the licence or his employee or agent contravenes a condition attached to an occasional licence, he shall be guilty of an offence.

(5) If a condition attached to an occasional licence is contravened as regards any club, every person entered in the register of clubs as an official, or member of the committee of management or governing body of the club at the time of the contravention shall be guilty of an offence:

Provided that a person shall not be convicted of such an offence if he proves that the contravention in question took place without his knowledge or consent.

(6) The provisions of this Act and of any byelaws or regulations made thereunder, other than provisions relating to permitted hours, shall apply to the sale of alcoholic liquor under subsection (1) above as if the sale took place on licensed premises and to the sale of alcoholic liquor under subsection (2) above as if the sale took place in the registered club.

(7) An application for an occasional licence under this section shall be made in writing to the clerk of the licensing board and shall specify the name and address of the applicant, the premises or place and occasion for which the licence is required, and the hours and period for which the licence is requested.

(8) At the same time as the application is made under subsection (7) above, the applicant shall send a copy of the application to the chief constable, and if an occasional licence is granted under this section the clerk of the licensing board shall send a copy of the licence to the chief constable not less than 24 hours before the beginning of the event to which it relates.

(9) A licensing board shall make such arrangements as it thinks fit as respects the consideration of applications under this section or any objection made thereto.

(10) In subsection (1) above, "the holder of a licence" includes the holder of an off-sale licence but does not include the holder of a refreshment licence or of an entertainment licence.

34.—(1) A licensing board may grant an occasional permission to a person representing a voluntary organisation or a branch of a voluntary organisation authorising him to sell alcoholic liquor during such hours and on such day as the board may determine, in the course of catering for an event, arising from or related to the activities of the organisation, taking place outwith licensed premises. Occasional permissions.

(2) Not more than four occasional permissions may be granted by a licensing board in any one year on behalf of the same voluntary organisation or the same branch of a voluntary organisation.

PART II

(3) In granting an occasional permission under this section, which shall be in writing, the licensing board may impose such conditions as it thinks fit including a condition as to the type of alcoholic liquor which may be sold under the permission, and if the person to whom the permission is granted contravenes such a condition he shall be guilty of an offence.

(4) The provisions of section 68 of this Act shall apply to any premises or place in respect of which an occasional permission is granted as they apply to licensed premises, with the substitution of references to the holder of the permission for the references to the holder of a licence.

(5) The provisions of section 85 of this Act shall apply to any premises or place in respect of which an occasional permission is granted as they apply to premises in respect of which a licence (other than an off-sale licence) is in force.

(6) The person to whom an occasional permission is granted shall ensure that the provisions of this Act or any byelaws or regulations made thereunder relating to the conduct of licensed premises are observed in the premises or place in respect of which the permission was granted as if he were the holder of a public house licence, and if he contravenes this subsection he shall be guilty of an offence:

Provided that it shall be a defence for any person charged with an offence under this subsection if he proves that he used due diligence to prevent the occurrence of the offence.

(7) Subsections (7) to (9) of section 33 of this Act shall apply in relation to applications for occasional permissions as they apply in relation to applications for occasional licences.

Consent of
licensing
board required
for recon-
struction, etc.
of certain
licensed
premises.

35.—(1) No reconstruction or extension of or alteration in any premises in respect of which a licence (other than an off-sale licence) is in force, being a reconstruction, extension or alteration which will affect a public or common part of such premises or any communication with such part, shall be made unless the licensing board within whose area such premises are situated has consented to such reconstruction, extension or alteration at a quarterly meeting of the board or at such other time as may be appointed by the board, or unless such reconstruction, extension or alteration is required by order of some lawful authority.

(2) A licensing board shall not give its consent under this section to any reconstruction, extension or alteration which will materially alter the character of the premises in question or materially alter the external appearance, shape or size of the premises and may, before considering an application for the

board's consent under this section, require plans of the proposed reconstruction, extension or alteration to be lodged with the clerk of the board at such time as the board may appoint.

(3) Before giving its consent under this section, the licensing board shall consult the fire authority for the area.

(4) If subsection (1) above is contravened, the sheriff may on a complaint at the instance of the licensing board, by order declare the licence which is in force for the premises in respect of which the contravention took place to be forfeited, or may direct that, within a time fixed by the order, the premises shall be restored to their original condition.

(5) For the purposes of this section—

(a) "public part" means a part open to customers who are not residents or guests of residents; and

(b) "common part" means a part open generally to all residents or to a particular class of them.

36.—(1) On any application for the renewal of a licence in respect of any premises (other than off-sale premises), a licensing board may require a plan of the licensed premises to be produced to the board and lodged with the clerk, and on renewing such licence the board may order that, within a time fixed by the order, such structural alterations as the board thinks reasonably necessary to secure the proper conduct of the business shall be made in that part of the licensed premises in which alcoholic liquor is sold or consumed.

Power of licensing board to order structural alterations on renewal of certain licences.

(2) Where an order made under this section is complied with, the licensing board shall not make a further order in respect of those premises within the 6 years following the date of the first-mentioned order unless during that time the board has refused to renew the licence in force in respect of the premises.

(3) If the holder of a licence makes default in complying with an order made under this section, he shall be guilty of an offence, and he shall be guilty of a further offence for every day on which the default continues after the expiry of the time fixed by the order.

(4) If the holder of a licence makes default in complying with an order made under this section, the licensing board may order the suspension of his licence and any such order shall specify the matters on which the order is based.

(5) An order under subsection (4) above shall remain in force until such time as the board is satisfied that the matters which led to the order have been satisfactorily remedied.

PART II

(6) The licence-holder may apply to the board for the cancellation of the order on the ground that the matters which led to the order have been satisfactorily remedied.

(7) Where a licensing board decides to order the suspension of a licence the suspension shall not take effect until the expiry of the time within which the holder of the licence may appeal to the sheriff, or, if the holder appeals to the sheriff or thereafter to the Court of Session, until the appeal has been determined in favour of the suspension or has been abandoned.

(8) The holder of the licence may appeal to the sheriff against an order made under subsection (4) above or against a refusal of a licensing board to cancel such an order.

Power of
licensing
board to make
regulations.

37. A licensing board may make regulations with respect to the making of applications for licences (including occasional licences and occasional permissions), extension of permitted hours and restriction of the terminal permitted hours and the procedure following thereon, and such regulations may include provisions designed to assist the board in determining the fitness of applicants to hold licences and the expediency of granting licences for the premises in respect of which application is made ; and the board may also make regulations with respect to the procedure to be followed in transferring licences under this Act and with respect to any matters which, by virtue of this Act, may be prescribed.

Power of
licensing
board to make
byelaws.

38.—(1) Without prejudice to its other powers under this Act, a licensing board may make byelaws for any of the following purposes—

- (a) for closing licensed premises wholly or partially on New Year's Day, and on such other days not being more than four in any one year as the board may think expedient for special reasons ;
- (b) or prohibiting holders of licenses from residing in their licensed premises, or for requiring the dwellinghouses of holders of licences to be separate from their licensed premises ;
- (c) for requiring all wines, made-wines and spirits sold by the holder of an off-sale licence to be sold in corked, stoppered or sealed vessels, cans, jars or casks ;
- (d) for requiring every holder of a hotel or public house licence to keep in his licensed premises and to renew from day to day a sufficient supply of drinking water, and such eatables as may be specified in the byelaw, and to display, offer and supply the same as may be required by the byelaw ;
- (e) for printing a list of all applications coming before any meeting of the licensing board, with such other information as may be considered necessary by the board ;

(f) for the setting out of conditions which may be attached to licences for the improvement of standards of, and conduct in, licensed premises ;

(g) for the granting of a licence of a type other than that applied for ;

Provided that a byelaw made under paragraph (c) above shall not apply to licensed premises where no groceries are kept or sold and where a bona fide wholesale business in alcoholic liquor is carried on.

(2) Byelaws made under subsection (1) above shall not have effect until they are confirmed by the Secretary of State, and the provisions of subsections (4) to (12) and (15) of section 202 of the Local Government (Scotland) Act 1973 and of section 204 of that Act shall, with any necessary modifications, apply in relation to byelaws to be made or made under this section as they apply in relation to byelaws to be made or made under that Act. 1973 c. 65.

(3) When granting a licence, a licensing board may attach to the licence any condition set out in a byelaw by virtue of paragraph (f) of subsection (1) above.

(4) The holder of any licence or any employee or agent of his shall be guilty of an offence if he commits a breach of any byelaw or any condition attached to a licence by virtue of a byelaw.

39.—(1) An appeal which may be made by virtue of any provision of this Act against any decision of a licensing board shall be to the sheriff, and the decision of the sheriff on any such appeal may include such order as to the expenses of the appeal as he thinks proper. Appeals to sheriff.

(2) An appeal under this section shall be lodged with the sheriff clerk within 14 days from the date of the decision appealed against or in a case where reasons for a decision have been given under section 18(2) of this Act, within 14 days from the date of receipt of those reasons, which shall be presumed to have been received on the day after the date on which they were posted, except that in the case of reasons posted on a Friday or Saturday, they shall be presumed to have been received on the Monday next following.

(3) On good cause being shown, the sheriff may hear an appeal under this section notwithstanding that it was not lodged within the time mentioned in subsection (2) above.

(4) The sheriff may uphold an appeal under this section only if he considers that the licensing board in arriving at its decision—

(a) erred in law ;

(b) based its decision on any incorrect material fact ;

(c) acted contrary to natural justice ; or

(d) exercised its discretion in an unreasonable manner.

PART II

(5) In considering an appeal grounded on paragraph (b) of sub-section (4) above, the sheriff may hear evidence by or on behalf of any party to the appeal.

(6) On upholding an appeal under this section the sheriff may—

(a) remit the case with the reason for his decision to the licensing board for reconsideration of its decision ;
or

(b) reverse or modify the decision of the licensing board.

(7) On remitting a case to a licensing board under subsection (6) above, the sheriff may—

(a) specify a date by which the rehearing by the board must take place ;

(b) modify any procedural steps which otherwise would be required in relation to the matter by or under any enactment ;

and any decision of a licensing board on any such case shall be valid as if reached at a quarterly meeting as mentioned in section 4(1)(a) of this Act.

(8) If any party to an appeal to the sheriff under any provision of this Act (other than Part VII) is dissatisfied in point of law with a decision of the sheriff, he may appeal therefrom to the Court of Session within 28 days from the date of that decision.

(9) The Court of Session may, by act of sederunt, make rules for the conduct of proceedings under this section.

PART III

SEAMEN'S CANTEENS

Power to
authorise
grant of
licences for
seamen's
canteens.

40. If a body approved by the Secretary of State have provided or propose to provide a seamen's canteen the need for which has been certified by him after consultation with the Merchant Navy Welfare Board, the licensing board within whose jurisdiction the said canteen is or will be situated may grant a licence under this Part of this Act authorising the person who is the manager of the canteen to sell alcoholic liquor in the canteen.

Procedure for
grant of
licences.

41.—(1) A licensing board shall not refuse to grant a licence under this Part of this Act except under subsection (2) below or on one or more of the following grounds—

(a) that the applicant is disqualified by or under this or any other enactment for holding a licence or is in other respects not a fit and proper person to hold a licence under this Part of this Act ; or

PART III

- (b) that the premises to which an application relates are not fit and convenient for the purposes of the canteen ;
or
- (c) in a case where objection has been made to the situation of the canteen, on the ground specified in the objection ; or
- (d) that the applicant or body providing the canteen has entered into an agreement limiting the sources from which the alcoholic liquor or the mineral waters to be sold in the canteen may be obtained ;

but nothing in this subsection shall prevent a licensing board from specifying in the licence granted by it the types of liquor (including if the board thinks fit types of liquor other than those in respect of which the application for the licence was made) which may be sold under the licence, and the holder of the licence or his employee or agent shall be guilty of an offence if he sells alcoholic liquor of a type other than that specified in the licence.

(2) Before application is made for the grant of a licence under this Part of this Act, draft rules as to the persons entitled to use the canteen shall be prepared for submission with the application, and the licensing board shall refuse to grant the licence unless the body providing the canteen undertake to make rules for the canteen in the form of the draft, with the modifications, if any, required by the licensing board, and not to vary those rules without the consent of the licensing board.

(3) Any licence granted under this Part of this Act shall provide that at all times at which alcoholic liquor is sold, food and beverages other than alcoholic liquor shall also be provided for sale, and if such food and beverages are not so provided, the holder of the licence or his employee or agent, as the case may be, shall be guilty of an offence.

(4) Part I of Schedule 2 to this Act shall have effect as respects the notices to be given and the documents to be served on an application for the grant of a licence under this Part of this Act.

(5) A licence under this Part of this Act may, in a case where it is proposed to construct or convert premises for a seamen's canteen, be a provisional licence to be made final after the proposal has been carried out ; and Part II of the said Schedule 2 shall have effect as respects such licences.

(6) Where any person desires to oppose an application for the grant of a licence under this Part of this Act, he shall, not later than seven days before the meeting of the licensing board at which the application is to be considered, give to the licensing board and to the applicant written notice of his objection specifying the ground of his objection in the manner mentioned in section 16(2) and (3) of this Act.

PART III

(7) Notwithstanding the foregoing provisions of this section, it shall be competent for a licensing board to entertain objections from the chief constable, lodged at any time before the hearing of an application, if the licensing board is satisfied that there is sufficient reason why due notice and intimation of the objection could not be given, and in such case the chief constable shall, where practicable, cause his objections to be intimated to the applicant before the hearing.

Renewal of
licences.

42.—(1) Section 30 of this Act shall have effect in relation to licences under this Part of this Act.

(2) If the Secretary of State has, in the calendar year in which the licence would otherwise expire, certified that the canteen is still needed, the licensing board may renew the licence.

(3) A licensing board shall not refuse an application for the renewal of a licence under this Part of this Act except under subsection (4) below or on one or more of the following grounds—

- (a) that the manager is disqualified by or under this or any other enactment for holding a licence or is in other respects not a fit and proper person to be the holder of a licence under this Part of this Act; or
- (b) that the rules as to the persons entitled to use the canteen have not been observed or that the canteen has in other respects been improperly conducted; or
- (c) that the manager or the body providing the canteen has entered into an agreement of the kind mentioned in paragraph (d) of section 41(1) of this Act.

(4) On renewing a licence under this Part of this Act a licensing board may by order, to be served on the holder, direct that, within a time fixed by the order, such structural alterations shall be made in the premises comprising the canteen as the board thinks reasonably necessary to secure the proper conduct of the canteen; and if, when application for renewal of the licence is next made after the time fixed by the order has expired, it is not shown to the satisfaction of the licensing board that the order has been complied with, the licensing board may refuse to renew the licence.

If an order under this subsection is complied with, the licensing board shall not make a further order within the six years following the first-mentioned order.

(5) Any person intending to oppose an application for renewal of a licence under this Part of this Act shall, not later than seven days before the hearing of the application, give to the holder of the licence and to the licensing board notice in writing of his intention, specifying the ground of his objection in the manner mentioned in section 16(2) and (3) of this Act.

PART III

(6) Notwithstanding the foregoing provisions of this subsection, it shall be competent for the licensing board to entertain objections from the chief constable, lodged at any time before the hearing of the application if the board is satisfied that there is sufficient reason why due notice and intimation of the objection could not be given, and in such a case the chief constable shall, where practicable, cause his objections to be intimated to the applicant before the hearing.

43.—(1) Where the holder of a licence under this Part of this Act subsequently ceases to be the manager of the canteen, the person for the time being in charge of the canteen may, during the period of 14 days from the date on which the holder of the licence ceased to be the manager, sell alcoholic liquor in the canteen as if that licence had been transferred to him. Transfer of licences.

(2) A transfer of a licence under this Part of this Act shall not be refused except on the ground that the applicant is disqualified by or under this or any other enactment for holding a licence or is in other respects not a fit and proper person to hold a licence under this Part of this Act.

(3) An applicant under this section shall give the notices required by Part III of Schedule 2 to this Act.

44. Where a licensing board—

Rights of appeal.

- (a) refuses to grant, renew or transfer a licence under this Part of this Act, or
- (b) on an application for the grant of a licence under this Part of this Act, specifies, as types of liquor which may be sold under the licence, types other than those in respect of which the application for the licence was made, or
- (c) on an application for renewal of a licence under this Part of this Act, does not comply with any request duly made by the applicant for a change in the specification of the types of liquor which may be sold under the licence, or
- (d) requires modifications in the rules proposed to be made as to the persons entitled to use the canteen, or withholds its consent to a variation of those rules, or
- (e) makes an order under section 42(4) of this Act,

the applicant or, as the case may be, the licence-holder may appeal to the sheriff from such a decision of the licensing board.

45.—(1) The provisions of this Act mentioned in subsection (2) below shall apply to licensed canteens, to the holders of licences under this Part of this Act and to their employees and Provisions of this Act which apply to licensed canteens.

PART III

agents as if a licensed canteen were a public house and as if the licence-holder of a canteen were the licence-holder of a public house.

(2) The provisions of this Act referred to in subsection (1) above are sections 31, 35, 65, 66, 71, 76, 77, 78, 79, 84, 85, 87, 88, and 126.

**Interpretation
of Part III.**

46. In this Part of this Act, "canteen" includes a part of a hostel where food or drink is supplied, whether or not the food or drink is separately paid for.

PART IV**NEW TOWNS**

**Committee to
determine
distribution of
licensed
premises in
new towns.**

47.—(1) For the purpose of determining the number, nature and distribution of licensed premises in new towns, there shall be a committee for each new town or, if it appears to the Secretary of State that by reason of the proximity of any two new towns it is expedient that one committee should be constituted for them and the Secretary of State by order so directs, for those two new towns.

(2) Such committees shall be constituted, and their procedure shall be regulated, in accordance with the provisions of Schedule 3 to this Act.

(3) The proceedings of such a committee shall not be invalidated by reason of any vacancy in the committee or any defect in the appointment of a member of the committee.

(4) The development corporation for the new town for which such a committee are constituted shall provide for the committee such accommodation and secretarial and other services as may be requisite for enabling the committee to exercise their functions, and the development corporation shall defray any expenses incurred by the committee in connection with the exercise of the committee's functions or in the payment of travelling and other allowances to members of the committee, being expenses incurred with the agreement of the development corporation given either before or after the incurring of the expenses or, in default of such agreement, with the approval of the Secretary of State.

(5) Where a committee are constituted for two new towns, the accommodation and services mentioned in subsection (4) above shall be provided by such one of the development corporations concerned, or partly by one and partly by the other, as the corporations may from time to time agree or, in default of such agreement, as the Secretary of State may determine ;

PART IV

and the expenses mentioned in that subsection shall be defrayed by the development corporations in such proportions as may be so agreed or determined; and references in that subsection to the development corporation shall be construed accordingly.

(6) Where a committee are constituted for two new towns, references in this Part of this Act and in Schedule 3 to this Act to the area for which the committee are constituted shall be construed as references to the aggregate of the areas of the said new towns.

(7) An order under this section or the said Schedule may be varied or revoked by a subsequent order made thereunder.

48. It shall be the duty of every committee constituted under section 47 of this Act, to consider from time to time, having regard to the existing circumstances of the area for which the committee are constituted and to the proposed development of that area, the requirements of the area as respects licensed premises, the accommodation and amenities which should be provided thereat and the facilities which should be available thereat for obtaining both alcoholic liquor and meals and other refreshments, including the provision of accommodation for the consumption therein of beverages other than alcoholic liquor and in which the consumption of alcoholic liquor is prohibited.

General duties
of committee.

49.—(1) In the light of their consideration of the matters mentioned in section 48 of this Act, a committee constituted under section 47 of this Act shall from time to time formulate proposals specifying the places in the area for which the committee are constituted at which licensed premises should be established; and the proposals shall specify the way in which any licensed premises established in accordance with the proposals should be licensed, and shall contain provisions (in this Part of this Act referred to as “supplementary provisions”) as to the type of accommodation, amenities and services to be provided in premises being or comprising any such licensed premises, including, unless the committee in any particular case otherwise decide, provisions for the service of meals and of refreshments other than alcoholic liquor.

Submission
and approval
of proposals
by Committee.

(2) References in this Part of this Act to specifying the way in which licensed premises should be licensed are references to specifying—

(a) what type of licence should be granted in respect of the premises, and

(b) what descriptions of alcoholic liquor should be authorised to be sold under that licence,

and references in this Part of this Act to the licensing of premises in accordance with proposals shall be construed accordingly.

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(3) The committee shall submit proposals formulated under this section to the Secretary of State, together with such plans and other matter explanatory of the nature and effect of the proposals as the committee think fit or the Secretary of State may, in any particular case, require.

(4) Where a committee have submitted proposals to the Secretary of State under this section, they shall publish by advertisement in each of two successive weeks in one or more local newspapers circulating in the area for which the committee are constituted, and may publish, in such further manner as the committee may determine, a notice that they have submitted the proposals, naming a place at which copies of the proposals and of the plans and explanatory matter submitted to the Secretary of State may be seen at all reasonable hours, and stating the time, not being less than 28 days, within which and the manner in which objections to the proposals may be made to the Secretary of State.

(5) If no objection to the proposals is made to the Secretary of State within the time and in the manner stated in the notice, or if all objections so made are withdrawn, the Secretary of State may, if he thinks fit, confirm the proposals, but, if objection is so made and not withdrawn, he shall afford to any person making an objection an opportunity of appearing before and being heard by a person appointed for the purpose by the Secretary of State or, if it appears to the Secretary of State that the matters to which the objection relates are such as to require investigation by public local inquiry, he shall cause a public local inquiry to be held, and after considering any objection not withdrawn and the report of the person before whom the objector appeared or of the person holding the inquiry, as the case may be, he may confirm the proposals.

1973 c. 65.

(6) Subsections (2) to (8) of section 210 of the Local Government (Scotland) Act 1973 (which relate to local inquiries held under that section) shall apply to an inquiry held under this section as they apply to inquiries held under that section.

(7) The Secretary of State shall, before confirming any proposals submitted to him under this section, consult with the district planning authority.

(8) The power of the Secretary of State under subsection (5) above to confirm proposals shall include power—

(a) where the proposals relate to the establishment of licensed premises at more than one place, to confirm the proposals (but without prejudice to the next following paragraph) so far as they relate to one or some only of the places in question ;

PART IV

- (b) to confirm the proposals subject to modifications so far as they relate to the situation of proposed licensed premises ;
- (c) to confirm the proposals subject to the modification of any supplementary provisions contained in the proposals or to the addition of any supplementary provisions which the committee could have included in the proposals ;

and references in this Part of this Act to proposals which have been confirmed shall be construed accordingly.

(9) Proposals of a committee under this section may be varied or revoked by subsequent proposals formulated by the committee and submitted to and confirmed by the Secretary of State in like manner as the original proposals ; and references in this Part of this Act to proposals under this section which have been confirmed shall be construed as references to such proposals as they have effect having regard to any subsequent variation or revocation of them.

50.—(1) Where application is made under Part II of this Act for the grant of a new licence for any premises in a new town, being premises situated in accordance with proposals under section 49 of this Act which have been confirmed, or for the renewal of a licence granted in respect of such premises, then if the effect of the grant or renewal would be that the premises would be licensed in accordance with the proposals and if the licensing board is satisfied—

Grants of new licences and renewals in new towns.

- (a) that the premises are fit and convenient for the purpose, or in the case of an application for the provisional grant of a new licence or for the renewal of such a provisional grant, that if the premises had been actually constructed in accordance with the plans submitted to the licensing board they would be fit and convenient as aforesaid ;
- (b) that the applicant is not disqualified by or under this or any other enactment for holding a licence and is a fit and proper person to hold a licence, and
- (c) that effect has been or will be given to any supplementary provisions contained in the proposals,

the board shall grant the application.

(2) An application for a new licence made as mentioned in subsection (1) above shall not be entertained by a licensing board unless there are produced to the board, in accordance with the provisions of section 23 of this Act, certificates from the appropriate authority as to the suitability of the premises for which the licence is sought, in relation to planning, building control and food hygiene, and an application for the renewal of a licence under that subsection shall not be entertained unless there is produced to the board, in accordance with section 24(1) of this

PART IV Act, a certificate as to the suitability of the premises in relation to food hygiene.

(3) Before granting or renewing a licence for any premises in a new town, the licensing board shall consult the fire authority for the area.

(4) It shall not be lawful for a licence to be granted in respect of any premises in a new town which are not licensed at the time of the application for such grant unless—

- (a) the premises are situated in accordance with proposals under section 49 of this Act which have been confirmed ; and
- (b) the effect of the grant would be that the premises would be licensed in accordance with the proposals ; and
- (c) the licensing board is satisfied that effect has been or will be given to any supplementary provisions contained in the proposals.

(5) It shall not be lawful—

- (a) for a licence of a type different from the type of the subsisting licence ; or
- (b) for a licence the effect of which would be to add to the descriptions of alcoholic liquor authorised to be sold on the premises ; or
- (c) for a licence other than a six day licence, where the subsisting licence is a six day licence,

to be granted in respect of any premises in a new town which are licensed at the time of the application for such grant unless the committee constituted under section 47 of this Act for the new town notify the licensing board that the committee have no objection to the grant.

(6) A licensing board shall attach to any licence granted by it in respect of premises in a new town such conditions, including conditions as to the type of alcoholic liquor which may be sold in the premises, as are necessary for the purpose of implementing proposals confirmed by the Secretary of State under section 49(5) of this Act, and the holder of the licence or his employee or agent shall be guilty of an offence if he commits a breach of any such condition.

Dissolution of
development
corporation.
1968 c. 16.

51. On the coming into operation of an order under section 36(1) of the New Towns (Scotland) Act 1968 providing for the winding up and dissolution of the development corporation for any new town—

- (a) if under section 47 of this Act, a committee were constituted for that new town only, the committee shall cease to exist ;
- (b) if under the said section 47 a committee were constituted for that and another new town, the committee shall

PART IV

cease to exercise their functions as respects the first-mentioned new town, and thereafter this section shall apply as if under section 47 of this Act the committee had been constituted for the said other new town only, and the Secretary of State shall vary any order made by him under the said section 47 in such manner as appears to him requisite in consequence of the coming into operation of the said order providing for the winding up and dissolution of the development corporation ;

- (c) section 50 of this Act shall cease to apply to the first-mentioned new town but without prejudice to the operation of subsections (1) and (2) thereof as respects any application made before the date on which the order providing for the winding up and dissolution of the development corporation came into operation or made at the quarterly meeting of the licensing board next held after that date.

52. In this Part of this Act, "new town" means an area designated as the site of a proposed new town under section 1 of Part IV. of the New Towns (Scotland) Act 1968, by an order which has become operative: Interpretation of Part IV. 1968 c. 16.

Provided that—

- (i) if an order designating the site of a proposed new town is revoked, section 51 of this Act shall, with any necessary modifications, apply as if at the time of the revocation of that order an order had come into operation under section 36(1) of the New Towns (Scotland) Act 1968 providing for the winding up and dissolution of the development corporation ;
- (ii) where, by reason of the variation of an order, land ceases to be comprised in such a site, the variation shall not affect the operation of subsections (1) and (2) of section 50 of this Act as respects an application made before the variation took effect or at the next quarterly meeting of the licensing board held thereafter, but except as aforesaid land excluded from such a site by the variation of an order shall be treated for the purposes of sections 47 to 52 of this Act and Schedule 3 to this Act as if not comprised in a new town.

PART V

THE PERMITTED HOURS

53.—(1) Subject to the provisions of this Act, the permitted hours in licensed premises, licensed canteens and registered clubs shall be those set out in the following provisions of this section. Permitted hours in licensed premises and registered clubs.

- (2) The permitted hours for premises in respect of which a

PART V

public house licence or a refreshment licence is in force shall be the period between eleven in the morning and half-past two in the afternoon and the period between five and eleven in the evening, except for Sundays when the permitted hours shall be the period between half-past twelve and half-past two in the afternoon and the period between half-past six and eleven in the evening but only in the case of premises in respect of which an application for Sunday opening has been made to and granted by a licensing board in accordance with the provisions of Schedule 4 to this Act, which shall have effect.

(3) The permitted hours for premises in respect of which a hotel licence, a restricted hotel licence, a restaurant licence, an entertainment licence or a licence under Part III of this Act is in force or which are a registered club shall, on weekdays, be the period between eleven in the morning and half-past two in the afternoon and the period between five and eleven in the evening and, on Sundays, be the period between half-past twelve and half-past two in the afternoon and the period between half-past six and eleven in the evening.

(4) Nothing in this section shall authorise the sale or supply of alcoholic liquor for consumption off the premises, being premises in respect of which a refreshment licence, an entertainment licence, a restricted hotel licence, a restaurant licence or a licence under Part III of this Act is in force.

Prohibition of
sale and
consumption
of alcoholic
liquor except
during
permitted
hours.

54.—(1) Subject to the provisions of this Act, no person shall, except during the permitted hours—

- (a) sell or supply to any person in any licensed premises, or licensed canteen, or in the premises of a registered club any alcoholic liquor to be consumed either on or off the premises, or
- (b) consume in, or take from, any such premises any alcoholic liquor.

(2) Subsection (1) above shall not apply to off-sale premises or to the off-sale part of premises (within the meaning of section 119 of this Act) in respect of which a public house licence or hotel licence is held.

(3) Nothing in subsection (1) above shall prohibit or restrict—

- (a) the consumption of alcoholic liquor in any premises at any time within fifteen minutes after the conclusion of the permitted hours in the afternoon or evening, as the case may be, if such liquor was supplied in those premises during the permitted hours ;
- (b) the taking of alcoholic liquor from any premises within fifteen minutes after the conclusion of the permitted hours in the afternoon or evening, as the case may be, if such liquor was supplied in those premises during the

permitted hours and was not supplied or taken away in an open vessel ;

- (c) the sale or supply to, or consumption by, any person of alcoholic liquor in any premises where he is residing ;
- (d) the taking of alcoholic liquor from any premises by a person residing there ;
- (e) the supply of alcoholic liquor in any premises, for consumption on those premises, to any private friends of a person residing there who are bona fide entertained by, and at the expense of, that person, or the consumption by such friends of alcoholic liquor so supplied to them ;
- (f) the ordering of alcoholic liquor to be consumed off the premises or the despatch by the vendor of liquor so ordered ;
- (g) the supply of alcoholic liquor for consumption on licensed premises to any private friends of the holder of the licence bona fide entertained by him at his own expense, or the consumption of alcoholic liquor by persons so supplied ;
- (h) the consumption of alcoholic liquor at a meal by any person at any time within half an hour after the conclusion of the permitted hours in the afternoon or evening, as the case may be, if the liquor was supplied during the permitted hours and served at the same time as the meal and for consumption at the meal ;
- (i) the sale of alcoholic liquor to a trader for the purposes of his trade, or to a registered club for the purposes of the club ; or
- (j) the sale or supply of alcoholic liquor to any canteen in which the sale or supply of alcoholic liquor is carried on under the authority of the Secretary of State or to any authorised mess of members of Her Majesty's naval, military or air forces.

(4) If any person contravenes this section he shall be guilty of an offence.

(5) Nothing in this Act shall be taken to require any premises to be open for the sale or supply of alcoholic liquor during the permitted hours.

55. On granting or transferring a restricted hotel licence or a restaurant licence in respect of any premises, a licensing board shall, if as regards the use of the premises for the provision of the customary main meals it appears to the board that it is only for the customary main meal at midday or only for the customary main meal in the evening that the premises fall within paragraph 54, the provisions regarding restricted hotel and restaurant licences.

PART V

(a)(ii) of the restricted hotel licence or paragraph (a)(ii) of the restaurant licence as set out in Schedule 1 to this Act, insert in the licence a condition that there shall be no permitted hours in the evening, or that there shall be permitted hours in the premises only in the evening, as the case requires.

Alternative
permitted
hours in
certain
athletic clubs
during winter.

56.—(1) A registered club may apply to the sheriff for any one of the following orders—

(a) an order providing that during the winter period the permitted hours in the club on weekdays shall not be those set out in section 53(3) of this Act, but shall instead be the period between eleven in the morning and two in the afternoon and the period between four and half-past ten in the evening or alternatively be the said periods on weekdays other than Saturday, and on Saturday be the period between one in the afternoon and half-past ten in the evening ; or

(b) an order providing that during the winter period the permitted hours in the club on Sundays shall not be those set out in the said section 53(3), but shall instead be the period between half-past twelve and two in the afternoon and the period between four and nine in the evening ; or

(c) an order which contains both the aforesaid provisions ; and the sheriff shall, if in his opinion the conditions set out in subsection (2) below are satisfied, make the order applied for.

(2) The conditions referred to in subsection (1) above are—

(a) that the premises of the club are structurally adapted and bona fide used, or intended to be used, wholly or mainly for the purpose of providing facilities in connection with the carrying on by members of the club and their guests of athletic sports or athletic games ;

(b) that one or more of such sports or games is or are usually carried on out of doors and, when so carried on, can (unless artificial lighting is used) only be carried on during hours of daylight ;

(c) that the said premises are regularly used, or are intended regularly to be used, during the winter period, for providing facilities in connection with the carrying on by members of the club and their guests, during the hours of daylight, of such a sport or game as is mentioned in paragraph (b) above ;

(d) that having regard to the time at which the said sport or game is usually carried on by members of the club and their guests, the permitted hours set out in section

53(3) of this Act are not suitable for the supply of alcoholic liquor in the said premises to persons who participate in that sport or game.

(3) On an application for an order being made under subsection (1) above by any club, the sheriff clerk shall forthwith give notice thereof to the chief constable who may, within 21 days of the date of the receipt by him of such notice, lodge with the sheriff clerk objections to the making of such order on the ground that one or more of the conditions set out in subsection (2) above has not or have not been satisfied in relation to the club, and shall, on lodging any such objections, send a copy thereof to the secretary of the club; and if any such objections are lodged and not withdrawn, the sheriff shall, as soon as may be, hear parties upon the application and objections and may order such enquiry as he thinks fit, and shall thereafter make or refuse to make the order applied for, and may award expenses against the unsuccessful party.

(4) An order made under this section by the sheriff in respect of any club shall expire on the date on which the certificate of registration which is in force in respect of the club expires.

(5) In this section, the expression "the winter period" means the period beginning with 1st October and ending with 31st March.

57.—(1) This section shall apply to any premises for which a licence (other than an off-sale licence) is held or to the premises of a registered club—

Extension of permitted hours in the afternoon in certain licensed premises and clubs.

(a) if the holder of the licence or, as the case may be, the club gives notice of the application of the section to the premises in accordance with subsection (6) below, and

(b) as from such date as may be specified in the said notice:

Provided that, in the case of premises for which a public house or a hotel licence is held or the premises of a club, the licence-holder or the club, as the case may be, shall not give notice of application as aforesaid, and this section shall not apply to such premises, unless the licensing board for the area within which the premises are situated is satisfied that the premises are structurally adapted and bona fide used, or intended to be used, for the purpose of habitually providing the customary main meal at midday for the accommodation of persons frequenting the premises.

(2) While this section applies to any premises, the effect shall be that, for the purposes mentioned in subsection (3) below, the permitted hours in those premises in the afternoon shall be increased by the addition of one and a half hours at the end thereof.

PART V

(3) The purposes referred to in subsection (2) above are—

- (a) the sale or supply to persons taking table meals in the premises of alcoholic liquor supplied in a part of the premises usually set apart for the service of such persons, and supplied for consumption by such a person in that part of the premises as an ancillary to his meal ; and
- (b) the consumption of alcoholic liquor so supplied.

(4) While this section applies to any premises, then for purposes other than those mentioned in subsection (3) above, or in parts of the premises other than the part so mentioned, the permitted hours shall be the same as if this section did not apply to the premises.

(5) This section shall cease to apply to any premises on such day as may be specified in the notice, if the holder of the licence or the club, as the case may be, gives notice of the disapplication of the section from the premises in accordance with subsection (6) below :

Provided that this section shall cease to apply to premises for which a public house or a hotel licence is held, or to the premises of a club, at any time on the licensing board ceasing to be satisfied as mentioned in the proviso to subsection (1) above.

(6) A notice of the application of this section to, or of the disapplication of this section from, any premises—

- (a) shall be in writing ;
- (b) shall, in the case of a club, be given by the secretary of the club on its behalf ;
- (c) shall, in the case of a notice of application, specify the date from which the section is to apply to the premises and, in the case of a notice of disapplication, state that the section is to cease to apply to the premises on the date specified in the notice ;
- (d) shall be served on the chief constable not later than 14 days before the date specified as aforesaid.

(7) The secretary of any club to the premises of which this section applies shall notify the licensing board for the area within which such premises are situated of any reconstruction or extension of, or alteration in, the premises which affects the facilities available in the premises for the provision of the customary main meal at midday, and if the secretary of any club contravenes this subsection he shall be guilty of an offence.

(8) The holder of the licence for premises to which this section applies shall keep posted in some conspicuous place in the premises a notice stating that this section applies thereto and setting out the effect of its application, and if any person contravenes this subsection he shall be guilty of an offence.

58.—(1) This section shall apply to any premises for which a licence (other than an off-sale licence) is held or to the premises of a registered club—

(a) if the holder of the licence or, as the case may be, the club gives notice of the application of the section to the premises in accordance with subsection (6) below, and

(b) as from such date as may be specified in the said notice:

PART V
Extension of
permitted
hours in the
evening
in certain
licensed
premises
and clubs.

Provided that, in the case of premises for which a public house or a hotel licence is held or the premises of a club, the licence-holder or the club, as the case may be, shall not give notice of application as aforesaid and this section shall not apply to such premises, unless the licensing board for the area within which the premises are situated is satisfied that the premises are structurally adapted and bona fide used, or intended to be used, for the purpose of habitually providing, for the accommodation of persons frequenting the premises, substantial refreshment to which the sale and supply of alcoholic liquor is ancillary.

(2) While this section applies to any premises, the effect shall be that for the purposes mentioned in subsection (3) below the permitted hours in those premises in the evening shall be increased by the addition of two hours at the end thereof.

(3) The purposes referred to in subsection (2) above are—

(a) the sale or supply to persons taking table meals in the premises of alcoholic liquor supplied in a part of the premises usually set apart for the service of such persons, and supplied for consumption by such a person in that part of the premises as an ancillary to his meal; and

(b) the consumption of alcoholic liquor so supplied.

(4) While this section applies to any premises, then for purposes other than those mentioned in subsection (3) above, or in parts of the premises other than the part so mentioned, the permitted hours shall be the same as if this section did not apply to the premises.

(5) This section shall cease to apply to any premises on such day as may be specified in the notice if the holder of the licence or the club, as the case may be, gives notice of the disapplication of the section from the premises in accordance with subsection (6) below:

Provided that this section shall cease to apply to premises for which a public house or a hotel licence is held, or to the premises of a club, at any time on the licensing board ceasing to be satisfied as mentioned in the proviso to subsection (1) above.

(6) A notice of the application of this section to, or of the disapplication of this section from, any premises—

(a) shall be in writing;

PART V

- (b) shall, in the case of a club, be given by the secretary of the club on its behalf ;
- (c) shall, in the case of a notice of application, specify the date from which the section is to apply to the premises and, in the case of a notice of disapplication, state that the section is to cease to apply to the premises on the date specified in the notice ;
- (d) shall be served on the chief constable not later than 14 days before the date specified as aforesaid.

(7) The secretary of any club to the premises of which this section applies shall notify the licensing board for the area within which such premises are situated of any reconstruction or extension of, or alteration in, the premises which affects the facilities available in the premises for the provision of substantial refreshment, and if the secretary of any club contravenes this subsection he shall be guilty of an offence.

(8) The holder of the licence for premises to which this section applies shall keep posted in some conspicuous place in the premises a notice stating that this section applies thereto and setting out the effect of its application, and if any person contravenes this subsection he shall be guilty of an offence.

Restaurants
in public
houses may
have
permitted
hours on
Sundays in
certain cases.

59.—(1) This section shall apply to any premises for which a public house licence is held and in respect of which an application for Sunday opening has not been granted under Schedule 4 to this Act—

- (a) if the holder of the licence gives notice of the application of the section to the premises in accordance with subsection (6) below, and
- (b) as from such date as may be specified in the said notice :

Provided that a licence-holder shall not give notice of application as aforesaid, and this section shall not apply to the premises for which he holds his licence, unless—

(i) the licensing board for the area within which the premises are situated is satisfied that the premises are structurally adapted and bona fide used, or intended to be used, for the purpose of habitually providing the customary main meal at midday or in the evening, or both, for the accommodation of persons frequenting the premises, and that the part of the premises mentioned in subsection (3) below does not contain a bar counter ; and

(ii) in the case of premises situated in a new town as defined in section 52 of this Act, the committee constituted under section 47 of this Act for the new

town have notified the licence-holder that they have no objection to the application of this section to the premises.

(2) While this section applies to any premises, the effect shall be that for the purposes mentioned in subsection (3) below there shall be permitted hours in those premises on Sundays, such permitted hours being the period between half-past twelve and half-past two in the afternoon and the period between half-past six and eleven in the evening.

(3) The purposes referred to in subsection (2) above are—

(a) the sale or supply to persons taking table meals in the premises of alcoholic liquor supplied in a part of the premises usually set apart for the service of such persons, and supplied for consumption by such a person in that part of the premises as an ancillary to his meal ; and

(b) the consumption of alcoholic liquor so supplied.

(4) While this section applies to any premises, then for purposes other than those mentioned in subsection (3) above, or in parts of the premises other than the part so mentioned, or except as otherwise provided by this Act, there shall be no permitted hours on Sundays.

(5) This section shall cease to apply to premises on such day as may be specified in the notice if the holder of the licence gives notice of the disapplication of the section from the premises in accordance with subsection (6) below :

Provided that this section shall cease to apply to premises at any time on the licensing board ceasing to be satisfied as mentioned in paragraph (i) of the proviso to subsection (1) above.

(6) A notice of the application of this section to, or of the disapplication of this section from, any premises—

(a) shall be in writing ;

(b) shall, in the case of a notice of application, specify the date from which the section is to apply to the premises and, in the case of a notice of disapplication, state that the section is to cease to apply to the premises on the date specified in the notice ;

(c) shall be served on the chief constable not later than 14 days before the date specified as aforesaid.

(7) The holder of the licence for premises to which this section applies shall keep posted in some conspicuous place in the premises a notice stating that this section applies thereto and setting out the effect of its application, and if any licence-holder contravenes this subsection he shall be guilty of an offence.

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Other provisions as respects extension of permitted hours on Sundays.

60.—(1) This section shall apply to any premises for which a hotel licence, restricted hotel licence, or restaurant licence is held and to any premises for which a public house licence or refreshment licence is held and in respect of which an application for Sunday opening has been granted under Schedule 4 to this Act if the licence-holder gives notice of the application of the section to the premises in accordance with the provisions of section 58(1) of this Act, and the effect of the application of this section to those premises shall be that, for the purposes mentioned in section 58(3) of this Act, the permitted hours on Sundays shall be extended by the addition to them of the hours between five and half-past six in the evening, and subsections (4), (5), (6) and (8) of that section shall apply accordingly.

(2) This section shall apply to any premises for which a public house licence is held and to which section 59 of this Act applies if the licence-holder gives notice of the application of the section to the premises in accordance with the provisions of subsection (1) of section 59 of this Act, and the effect of the application of this section to those premises shall be that, for the purposes mentioned in subsection (3) of section 59 of this Act, the permitted hours on Sundays shall be extended by the addition to them of the hours between five and half-past six in the evening, and subsections (5) to (7) of that section shall apply accordingly.

Six-day licence.

61.—(1) On granting or transferring a hotel licence, a restricted hotel licence, a restaurant licence or an entertainment licence in respect of any premises, a licensing board shall, if the applicant so requests, insert in the licence a condition that there shall be no permitted hours in those premises on Sundays.

(2) A licence in which such a condition has been inserted is in this Act referred to as a six-day licence.

Seasonal licences.

62.—(1) On granting or transferring a licence in respect of any premises, a licensing board may, if the applicant so requests and if the board is satisfied that the requirements of the area for which the board is constituted make it desirable, insert in the licence a condition that, during such part or parts of the year as may be specified in the condition (being a part which is not longer, or parts which taken together are not longer, than 180 days),—

- (a) in the case of premises other than off-sale premises, there shall be no permitted hours in the premises ; or
- (b) in the case of hotel premises, there shall be no permitted hours in the premises except in that part or those parts of the premises which consist of a bar or a restaurant which is open to the public ; or

- (c) in the case of off-sale premises, the licence-holder shall not open the premises for the serving of customers with alcoholic liquor.

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(2) A licence in which such a condition has been inserted is in this Act referred to as a seasonal licence.

63.—(1) The Secretary of State may by order bring this section into operation at any airport which appears to him to be an airport at which there is a substantial amount of international passenger traffic.

Exemption of international airports from restrictions on times at which alcoholic liquor may be sold or supplied.

(2) At an airport where this section is in operation, neither section 54 nor section 119 of this Act nor any provision or rule of law prohibiting or restricting the sale or supply of alcoholic liquor on Sunday shall apply to licensed premises which are within the examination station approved for the airport under section 16 of the Customs and Excise Act 1952.

1952 c. 44.

(3) Before the Secretary of State makes an order bringing this section into operation at an airport, he shall satisfy himself that arrangements have been made for affording reasonable facilities in licensed premises within the said examination station on the airport for obtaining hot and cold beverages other than alcoholic liquor at all times when alcoholic liquor is obtainable for consumption in those premises, and if it appears to him that at any airport where this section is in operation such arrangements are not being maintained he shall revoke the order in force as respects that airport; but this subsection shall be without prejudice to his power of making a further order with respect to that airport.

(4) The power of making orders under this section shall include power to revoke a previous order and shall be exercisable by statutory instrument.

64.—(1) Any person holding a public house licence, a hotel licence, a restricted hotel licence, a restaurant licence, an entertainment licence or a licence under Part III of this Act, in respect of any premises, may apply to the licensing board within whose area the premises are situated for the grant of an occasional or regular extension of permitted hours, and at the same time as he makes the application he shall send a copy of the application to the chief constable.

Occasional and regular extensions of permitted hours.

(2) A licensing board may grant an application for an occasional extension of permitted hours in connection with any occasion which the board considers appropriate, and such a grant shall authorise the person to whom it was granted to sell or

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supply alcoholic liquor in the premises to which the application relates during such period not exceeding one month and between such hours and on such day as may be specified in the grant.

(3) After considering the application and any objections made thereto, a licensing board may grant an application for the regular extension of permitted hours if, having regard to the social circumstances of the locality in which the premises in respect of which the application is made are situated or to activities taking place in that locality, the board considers it is desirable to do so, and such a grant shall authorise the person to whom it was granted to sell or supply alcoholic liquor in the premises to which the application relates during such period in the year succeeding the date of the grant and between such hours and on such days as may be specified in the grant.

(4) A licensing board may not grant an application from the holder of a public house licence for an occasional or regular extension of permitted hours on Sundays, except as respects premises to which section 59 of this Act applies and for the purposes of that section.

(5) The secretary of a registered club may apply to the licensing board within whose area the premises of the club are situated for the grant of an occasional or regular extension of permitted hours under this section, and the licensing board may grant such an extension if it is satisfied as to the matters mentioned in subsection (2) or (3) above or, in the case of an application for an occasional extension of permitted hours, consider that the occasion or circumstances in respect of which the application is made arise out of or are related to the functions of the club or a private function organised by an individual member or group of members of the club.

(6) A licensing board may attach such conditions as it thinks fit to the grant of an occasional or regular extension of permitted hours under this section, and if—

- (a) the holder of a licence or his employee or agent contravenes such a condition he shall be guilty of an offence; or
- (b) such a condition is contravened as regards any club, every person entered in the register of clubs as an official or member of the committee of management or governing body of the club at the time of the contravention shall be guilty of an offence:

Provided that a person shall not be convicted of an offence under this paragraph if he proves that the contravention in question took place without his knowledge or consent.

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(7) Any person mentioned in section 16(1) of this Act may object to an application for the regular extension of permitted hours, and any such objection shall be made in writing and lodged with the clerk of the licensing board and a copy thereof sent to the applicant not less than 7 days before the quarterly meeting at which the application is to be considered.

(8) A licensing board shall not grant an extension of permitted hours under this section if it considers that the extension is likely to cause undue public nuisance or to be a threat to public order or safety.

65.—(1) Where, on a complaint being made to a licensing board by any person mentioned in section 16(1) of this Act, the board is satisfied that the sale or supply of alcoholic liquor in the evening in licensed premises or in a registered club is the cause of undue public nuisance or constitutes a threat to public order or safety, the board may make an order (in this section referred to as “a restriction order”), and the effect of the restriction order is that the permitted hours in the evening shall be reduced by such a time and for such a period as may be specified in the order but no such order shall restrict the permitted hours before ten in the evening. Restriction orders.

(2) The provisions of subsections (4) to (6) of section 31 of this Act shall, with any necessary modifications, apply in relation to a restriction order as they apply in relation to the suspension of a licence.

(3) The licensing board may make a restriction order in relation to individual premises or in relation to a group of premises in respect of which the same type of licence is held.

(4) An application for the revocation of a restriction order may only be made after the expiry of two-thirds of the period for which the restriction order is in force.

(5) An application for the revocation of a restriction order shall be made in writing by the licence-holder of the premises or by the secretary of the registered club to which the order relates and lodged with the clerk of the licensing board not less than 21 days before the quarterly meeting at which the application is to be considered, and the licence-holder or secretary shall, at the same time, send a copy of the application to the persons whose complaint led to the making of the restriction order.

(6) Any person competent to make a complaint under this section may object to the revocation of a restriction order, and any such objection shall be made in writing and lodged with

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the clerk of the licensing board and a copy thereof sent to the licence-holder or to the registered club not less than 7 days before the quarterly meeting at which the application for revocation is to be considered.

(7) After considering the application and any objections made thereto, the licensing board may take such decision in the matter as it thinks fit and any such decision may relate to all or any of the premises which are the subject of the restriction order.

(8) The holder of the licence or a registered club may appeal to the sheriff against a decision of a licensing board to make a restriction order or against the period specified in a restriction order or against a refusal of the board to revoke the order, and any complainer who appeared at the hearing of an application for the revocation of a restriction order may appeal to the sheriff against a decision of the board to revoke the order.

Temporary
restriction of
permitted
hours.

66.—(1) On an application made to a licensing board by a constable of the rank of chief inspector or above for an order making a temporary restriction of permitted hours the board may, if it considers it desirable in the interests of public order or safety, order that the premises to which the application relates be closed to the public for such time of up to 3 hours and on such day or days as may be specified in the order.

(2) The licensing board may make an order under subsection (1) above in relation to individual premises or in relation to a group of premises in respect of which the same type of licence is held.

(3) The licence-holder of premises to which an application under subsection (1) above relates or the registered club concerned shall have no right to object to the application.

(4) An order under this section may be made in relation to any licensed premises or registered club.

PART VI**OFFENCES**

Penalties for
offences
against
provisions of
this Act and
Prevention of
Corruption
Acts.

67.—(1) Schedule 5 to this Act shall have effect in accordance with the provisions of this section with respect to the penalties for offences against the provisions of this Act specified in column 1 of that Schedule, of which a rough description is given in column 2 thereof, and in that Schedule—

(a) column 3 shows whether the licence-holder has vicarious responsibility in relation to offences in accordance with subsection (2) below ;

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(b) column 4 shows whether the licence-holder and his premises are liable to disqualification under subsection (3) below ; and

(c) column 5 shows the maximum penalty by way of fine or imprisonment which may be imposed.

(2) Where an employee or agent of a licence-holder commits an offence in respect of which column 3 of Schedule 5 to this Act indicates that the licence-holder has vicarious responsibility, proceedings may be instituted against the licence-holder in respect of that offence whether or not proceedings have been instituted against the person who committed the offence :

Provided that it shall be a defence for the licence-holder to prove that the offence occurred without his knowledge or connivance and that he exercised all due diligence to prevent its occurrence.

(3) Where a licence-holder is convicted of an offence in respect of which column 4 of Schedule 5 to this Act indicates that the licence-holder and the premises in respect of which the licence is held may be disqualified, or of an offence under section 19 of this Act, the court by which he is convicted may make an order in accordance with either or both of the following paragraphs, that is to say—

(a) that the licence-holder shall be disqualified from holding a licence in respect of the premises concerned for a period not exceeding five years ;

(b) that the premises in respect of which the licence is held shall be disqualified from being used as licensed premises for a period not exceeding five years.

(4) Where a licence-holder is convicted of an offence under the Prevention of Corruption Acts 1889 to 1916 in connection with an application to a licensing board under this Act, the court by which he is convicted may, in addition to any other penalty which the court may impose, make an order in accordance with either or both of the following paragraphs, that is to say—

(a) that the licence-holder shall be disqualified from holding a licence for a period not exceeding five years in respect of the premises to which the application relates or related ;

(b) that the premises to which the application relates or related shall be disqualified from being used as licensed premises for a period not exceeding five years.

(5) Where an offence against this Act which has been committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other

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In this subsection, the expression "director", in relation to any body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by the members thereof, means a member of that body corporate.

(6) In this section, "licence-holder" includes the holder of a licence under Part III of this Act.

Protection of young persons. **68.**—(1) Subject to subsection (6) below, the holder of a licence or his employee or agent shall not in licensed premises sell alcoholic liquor to a person under 18, or allow a person under 18 to consume alcoholic liquor in a bar, nor shall the holder of the licence allow any person to sell alcoholic liquor to a person under 18.

(2) A person under 18 shall not in licensed premises buy or attempt to buy alcoholic liquor nor consume alcoholic liquor in a bar.

(3) A person shall not knowingly act as agent for a person under 18 in the purchase of alcoholic liquor, nor shall any person knowingly buy or attempt to buy alcoholic liquor for consumption in a bar in licensed premises by a person under 18.

(4) In subsections (1) to (3) above and in sections 69 and 72 of this Act, references to a bar shall not apply to a bar at any time when it is, as is usual in the premises in question, set apart for the service of table meals and not used for the sale or supply of alcoholic liquor otherwise than to persons having table meals there and for consumption by such a person as an ancillary to his meal; and nothing in subsection (1) or (2) above shall prohibit the sale to or purchase by a person who has attained the age of 16, of beer, wine, made-wine, porter, cider or perry for consumption at a meal in a part of the premises usually set apart for the service of meals which is not a bar, or in a bar at any such time as aforesaid, and nothing in subsection (3) above shall prohibit the acting by any person as agent for a person who has attained the age of 16 in the purchase of beer, wine, made-wine, porter, cider or perry for consumption as aforesaid:

Provided that nothing in this subsection shall authorise a person who has attained the age of 16 to purchase alcoholic liquor for consumption by a person under that age.

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(5) The holder of a licence or his employee or agent shall not deliver, nor shall the holder of a licence allow any person to deliver, to a person under 18, alcoholic liquor sold in licensed premises for consumption off the premises, except where the delivery is made at the residence or working place of the purchaser, nor shall any person knowingly send a person under 18 for the purpose of obtaining alcoholic liquor sold or to be sold as aforesaid from the licensed premises or other premises from which the liquor is delivered in pursuance of the sale:

Provided that this subsection shall not apply where the person under 18 is a member of the licence-holder's family or his servant or apprentice and is employed as a messenger to deliver alcoholic liquor.

(6) Subsections (1) to (3) of this section shall apply in relation to any licensed canteen as if the canteen were licensed premises, but with the substitution for any reference to a bar of a reference to the canteen.

(7) If any person contravenes this section he shall be guilty of an offence.

69.—(1) The holder of a licence in respect of any premises or his employee or agent shall not allow a person under 14 to be in the bar of those premises during the permitted hours, and the holder of a licence under Part III of this Act in respect of any canteen or his employee or agent shall not allow such a person to be in that canteen during the permitted hours. Children prohibited from bars and licensed canteens.

(2) No person shall cause or procure, or attempt to cause or procure, any person under 14 to go to, or to be in, the bar of any licensed premises or in any licensed canteen during the permitted hours.

(3) No offence shall be committed under this section if the person under 14—

- (a) is a child of the holder of the licence, or
- (b) resides in the licensed premises but is not employed there, or
- (c) is in the bar of the licensed premises solely for the purpose of passing to or from some other part of the premises, not a bar, being a part to or from which there is no other convenient means of access or egress, or
- (d) is in the licensed canteen solely for the purpose of passing to or from some other part of premises in which the canteen is comprised, not a bar, being a part to or from which there is no other convenient means of access or egress.

(4) No offence shall be committed under this section in respect of a bar which is in any railway refreshment room or other

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(5) If any person contravenes this section he shall be guilty of an offence.

(6) Where in any proceedings under this section it is alleged that a person was at any time under 14 and he appears to the court then to have been under that age, for the purposes of the proceedings he shall be deemed to have been then under that age unless the contrary is shown.

Children on premises in respect of which refreshment licence held.

70.—(1) The holder of a refreshment licence in respect of any premises or his employee or agent shall not allow a person under 14 who is not accompanied by a person of 21 or over to be in the premises during the permitted hours, nor shall he allow a person under 14 to remain on the premises after eight in the evening, and if any person contravenes this section he shall be guilty of an offence.

(2) No offence shall be committed under this section if the person under 14—

(a) is a child of the holder of the licence, or

(b) resides in the premises but is not employed there.

Defence in relation to offences under section 68(1)(5), 69(1) or 70 of this Act.

71. Without prejudice to any defence available to a licence-holder by virtue of the proviso to section 67(2) of this Act, it shall be a defence for any person charged with an offence under section 68(1), 68(5), 69(1) or 70 of this Act if he proves—

(a) that he used due diligence to prevent the occurrence of the offence, or

(b) that he had no reason to suspect that the person in relation to whom the charge was brought was under 18 or under 14, as the case may be.

Persons under 18 not to be employed in bars of licensed canteens.

72.—(1) If any person under 18 is employed in any bar of licensed premises, or in a licensed canteen, at a time when the bar or canteen is open for the sale or consumption of alcoholic liquor, the holder of the licence or the employee or agent who employed the person under 18 shall be guilty of an offence.

(2) For the purposes of this section—

(a) a person shall not be deemed to be employed in a bar of licensed premises by reason only that in the course of his employment in some other part of the premises he enters the bar for the purpose of giving or receiving any message or of passing to or from some other part of the premises, not a bar, being a part to or from which there is no other convenient means of access or egress ;

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- (b) a person shall not be deemed to be employed in a licensed canteen by reason only that in the course of his employment in some other part of premises in which the canteen is comprised he enters the canteen for the purpose of giving or receiving any message or of passing to or from some other part of such premises, not a bar, being a part to or from which there is no other convenient means of access or egress.

(3) For the purposes of this section, a person shall be deemed to be employed by the person for whom he works notwithstanding that he receives no wages for his work.

(4) Where in any proceedings under this section it is alleged that a person was at any time under 18, and he appears to the court then to have been under that age, for the purposes of the proceedings he shall be deemed to have been then under that age unless the contrary is shown.

73.—(1) A person under 18 shall not be employed in premises in respect of which a refreshment licence is held if the purpose, or one of the purposes, of his employment is to serve alcoholic liquor to persons in those premises.

Persons under 18 not to be employed to serve alcoholic liquor in premises for which refreshment licence is held.

(2) For the purposes of this section a person shall be deemed to be employed in the premises where he works notwithstanding that he receives no wages for his work.

(3) Any person who contravenes this section shall be guilty of an offence.

(4) Where in any proceedings under this section it is alleged that a person was at any time under 18, and he appears to the court then to have been under that age, for the purposes of the proceedings he shall be deemed to have been then under that age unless the contrary is shown.

74.—(1) If any person attempts to enter any licensed premises (not being premises where he is residing) while drunk he shall be guilty of an offence.

Drunk persons entering or in licensed premises.

(2) If any person is in licensed premises while drunk and incapable of taking care of himself, he shall unless he is under the care or protection of a suitable person, be guilty of an offence.

(3) A constable may arrest without warrant any person committing an offence under this section.

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Procuring or aiding a drunken person to procure alcoholic liquor.

75.—(1) If a person in any licensed premises procures or attempts to procure any alcoholic liquor for consumption by a drunken person, he shall be guilty of an offence.

(2) If any person in any licensed premises aids a drunken person in obtaining or consuming any alcoholic liquor in the premises, he shall be guilty of an offence.

Sale or supply of alcoholic liquor to drunken persons.

76. A licence-holder or his employee or agent shall be guilty of an offence if he sells or supplies in licensed premises any alcoholic liquor to a drunken person.

Licence-holder and employees and agents not to be drunk.

77. It shall be an offence for the licence-holder of premises or his employee or agent to be in the premises while drunk.

Riotous behaviour, etc. in licensed premises.

78.—(1) If any person in licensed premises—

(a) behaves while drunk in a riotous or disorderly manner, or

(b) while drunk uses obscene or indecent language to the annoyance of any person,

he shall be guilty of an offence.

(2) A licence-holder or his employee or agent shall be guilty of an offence if he permits any breach of the peace, drunkenness or riotous or disorderly conduct in the premises in respect of which the licence is held.

Refusal to leave licensed premises.

79.—(1) If a person in any licensed premises—

(a) being riotous, quarrelsome or disorderly, refuses or neglects to leave such premises on being requested so to do by the occupier or manager thereof, or his employee or agent, or by any constable, or

(b) refuses to leave such premises at the conclusion of the permitted hours in the afternoon or evening, as the case may be, on being requested so to do as aforesaid,

he shall be guilty of an offence.

(2) A constable may assist in expelling from any such premises any person who refuses or neglects to leave the premises on being requested so to do as aforesaid.

(3) A constable may arrest without warrant any person committing an offence under this section.

80. If any person who occupies or keeps any premises in respect of which a licence is held—

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- (a) knowingly suffers thieves or reputed thieves or prostitutes or reputed prostitutes or persons convicted of an offence under section 4 or 5(3) of the Misuse of Drugs Act 1971 to remain in those premises, or knowingly permits thieves or reputed thieves, or prostitutes or reputed prostitutes or persons convicted of an offence under section 4 or 5(3) of the Misuse of Drugs Act 1971 to meet or assemble in the premises ; or

Penalty for permitting thieves, prostitutes, etc., or stolen goods in licensed premises. 1971 c. 38.

- (b) knowingly permits to be deposited in the premises goods which he has reasonable grounds for believing to be stolen goods ;

he shall be guilty of an offence.

81. A licence-holder or his employee or agent shall be guilty of an offence if he permits the playing of any game in the premises in respect of which the licence is held in such circumstances that an offence under the Betting, Gaming and Lotteries Acts 1963 to 1971 is committed.

Prohibition of betting and gaming offences.

82. If a person is found drunk or drinking in premises in which alcoholic liquor is sold without a licence he shall be guilty of an offence, and a constable may arrest without warrant any person committing such an offence.

Persons found drinking in unlicensed premises.

83.—(1) Subject to the provisions of this Act, alcoholic liquor shall not be consumed in any premises used for the sale to, or consumption by, the public of provisions, refreshments, confectionery or tobacco, during any time when the consumption of such liquor in public houses in the licensing area within which such premises are situated is prohibited by or under this Act, and any person who so consumes alcoholic liquor shall be guilty of an offence.

Drinking in places of public refreshment, etc., when public house is closed.

(2) If any person keeping or occupying any such premises permits alcoholic liquor to be consumed therein in contravention of subsection (1) above, he shall be guilty of an offence, but such a person shall not be guilty of an offence under this section if he proves that the liquor in question was consumed without his knowledge or consent.

(3) This section does not apply to the consumption of alcoholic liquor at a private function held on premises used as mentioned in subsection (1) above, being a private function which is related to a particular occasion.

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Offences in
relation to
constables.

84. If a licence-holder or his employee or agent—

- (a) knowingly suffers to remain in his premises any constable during any part of the time appointed for the constable's being on duty, except for the purpose of the execution of the constable's duty ; or
- (b) knowingly supplies any liquor or refreshment, whether by way of a gift or sale to any constable on duty, except by authority of a superior officer of the constable ;

the licence-holder, employee or agent, as the case may be, shall be guilty of an offence.

Power of
police to
enter licensed
premises.

85.—(1) A constable may at any time enter and inspect any premises in respect of which a licence (other than an off-sale licence) is in force, and may also at any time enter and inspect premises in respect of which an off-sale licence is in force if he has reasonable grounds for believing that an offence has been or is being committed on those premises.

(2) If any person fails to admit a constable who demands entry to such premises in pursuance of this section or obstructs the entry to the premises of such a constable, he shall be guilty of an offence.

Power of
police to enter
unlicensed
premises.

86.—(1) A constable may at any time enter and inspect any temperance hotel, restaurant, shop, vessel or other place where food or drink is sold for consumption on the premises or in which he has reasonable grounds for believing that alcoholic liquor is being trafficked in unlawfully :

Provided that a constable below the rank of inspector shall not exercise any power of entry conferred by this section unless he has previously obtained the authority in writing of a justice of the peace or of a constable of or above the said rank, and shall not exercise such power later than eight days from the date of such authority and shall exercise it on such time or times only as may be specified in the authority.

(2) If any person fails to admit a constable who demands entry to any premises or place in pursuance of this section or obstructs the entry to the premises or place of such constable, he shall be guilty of an offence.

Restriction on
credit sales.

87.—(1) A person shall not—

- (a) sell or supply in licensed premises, or in the premises of a registered club, alcoholic liquor to be consumed on the premises,
- (b) consume alcoholic liquor on any such premises,

unless it is paid for before or at the time when it is supplied or sold :

Provided that an offence shall not be committed under this section if—

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- (a) the liquor is sold or supplied for consumption at a meal, supplied at the same time and is consumed with the meal, and the liquor is paid for with the meal, or
- (b) the liquor is sold or supplied for consumption by a person residing in the premises or by a private friend of such a person who is bona fide entertained by, and at the expense of, that person, and if it is paid for with that person's accommodation, or
- (c) the liquor is sold or supplied in premises in respect of which a hotel licence, restricted hotel licence, restaurant licence or entertainment licence is held (other than in a public bar of such premises) in response to the production of a credit token within the meaning of section 14 of the Consumer Credit Act 1974.

1974 c. 39.

(2) If any person contravenes this section he shall be guilty of an offence.

(3) Nothing in this section shall prohibit or restrict the sale or supply of alcoholic liquor to any canteen in which the sale or supply of alcoholic liquor is carried on under the authority of the Secretary of State or to any authorised mess of the members of Her Majesty's naval, military or air forces.

88. A licence-holder or his employee or agent shall not fraudulently adulterate the food or alcoholic liquor sold by him or sell the same knowing them to have been fraudulently adulterated, and if he does so the licence-holder, employee or agent, as the case may be, shall be guilty of an offence. Fraudulent adulteration of food and drink.

89.—(1) A sheriff may, if riot or tumult happens or is expected to happen, order the holder of a licence in respect of premises situated in or near the place where a riot or tumult happens or is expected to happen to close those premises during such time as may be specified in the order. Order to close licensed premises.

(2) If the holder of any licence or his employee or agent keeps premises open for the sale of alcoholic liquor during any time at which, by virtue of an order made under subsection (1) above or of an order made by a licensing board under any provision of this Act, they are required to be closed, the licence-holder, employee or agent, as the case may be, shall be guilty of an offence.

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Trafficking or
bartering
without licence
or hawking of
liquor.

90. Subject to the provisions of this Act, if any person—

- (a) trafficks in any alcoholic liquor in any premises or place without holding a licence in that behalf, or
- (b) barter or sells spirits by retail without holding a licence in that behalf, or
- (c) hawks alcoholic liquor,

he shall be guilty of an offence, and a constable or any other person may arrest without warrant a person committing an offence under paragraph (c) above.

Delivery of
alcoholic
liquor by
vehicles, etc.

91.—(1) A person shall not, in pursuance of a sale by him of alcoholic liquor, deliver that liquor from any vehicle or receptacle unless—

- (a) before the liquor was despatched, the quantity, description and price of the liquor and the name and address of the person to whom it was to be supplied had been entered in a day book kept in the premises from which the liquor was despatched, and
- (b) the person delivering the liquor carries a delivery book or invoice in which there had been entered, before the liquor was despatched, the quantity, description and price of the liquor and the name and address of the person to whom it was to be supplied.

(2) A person shall not, himself or by his employee or agent,—

- (a) carry in any vehicle or receptacle, while in use for the delivery of alcoholic liquor in pursuance of a sale by that person, any alcoholic liquor that is not entered in a day book and delivery book or invoice under subsection (1) above;
- (b) deliver, in pursuance of a sale, any alcoholic liquor at any address not entered as aforesaid.

(3) A person shall not, himself or by his employee or agent, refuse to allow a constable to examine any vehicle or receptacle while in use for the delivery of alcoholic liquor or to examine a delivery book or invoice carried, or day book kept, under subsection (1) above.

(4) Nothing in this section shall prohibit or restrict the delivery of alcoholic liquor to a trader for the purposes of his trade or to a registered club for the purposes of the club.

(5) If any person contravenes the provisions of this section he shall be guilty of an offence.

92.—(1) If the holder of a public service vehicle licence in respect of any vehicle, either himself or by his employee or agent, or if the employee or agent of such holder permits any alcoholic liquor to be carried on the said vehicle in such a container or other device as is mentioned in subsection (4) below at any time when that vehicle is being used as a contract carriage, he shall be guilty of an offence.

PART VI
Restriction on
carriage of
alcoholic
liquor in
crates, etc., on
contract
carriages.

(2) If any person procures or attempts to procure a contravention of subsection (1) above he shall be guilty of an offence.

(3) Where the holder of a public service vehicle licence is charged with an offence under this section by reason only of a contravention of subsection (1) above committed by an employee or agent of his, it shall be a defence for him to prove that the contravention took place without his consent or connivance and that he exercised all due diligence to prevent it.

(4) This section applies to any container or other device (including a container or device fixed to, or forming part of, a vehicle) constructed or adapted for the purpose of holding two or more bottles or cans or of holding liquid in excess of six pints.

(5) In this section “public service vehicle licence” and “contract carriage” have the like meanings as in Part III of the Road Traffic Act 1960.

1960 c. 16.

93.—(1) No person shall, except during the period between half-past twelve and half-past two in the afternoon, or the period between half-past six and eleven in the evening, himself, or by his employee or agent, sell or supply alcoholic liquor on a passenger vessel during any voyage commencing on a Sunday and terminating on the same day, being—

Sale of
alcoholic
liquor on
passenger
vessels on
Sundays.

(a) a voyage between any two places in Scotland ; or

(b) a voyage in a vessel going from and returning on the same day to the same place in Scotland ;

and if any person contravenes this section he shall be guilty of an offence.

(2) In this section, the expression “passenger vessel” means a vessel of any description employed for the carriage of passengers which goes from any place in the United Kingdom to any other such place, or goes from and returns to the same place in the United Kingdom on the same day.

PART VI

Forfeiture of
wholesaler's
excise licence
in certain
cases.

94.—(1) If the holder of a wholesaler's excise licence knowingly permits any breach of the peace, drunkenness or riotous and disorderly conduct in his premises, or sells or supplies alcoholic liquor on a Sunday, or to persons who are in a state of intoxication, he shall be guilty of an offence.

(2) Where any person holding such a licence is convicted of an offence under this section or of an offence under section 89 or 90 of this Act, then—

- (a) the court shall, in addition to any penalty which they may impose on such person, declare any such licence to be held by that person to be forfeited; and
- (b) the said person shall be disqualified for obtaining any such licence during a period of two years from the date of such conviction;

and any licence so declared to be forfeited shall thereupon become void, and any licence granted in contravention of paragraph (b) above shall be void.

(3) Where any person is convicted of any such offence as is mentioned in subsection (2) above, the clerk of court shall forthwith send particulars of the conviction to the Commissioners.

Sale or supply
of alcoholic
liquor for
consumption
outside
registered club.

95.—(1) If any person sells or supplies alcoholic liquor in the premises of a registered club for consumption off the premises, or authorises such sale or supply of alcoholic liquor, or pays for alcoholic liquor so sold or supplied, he shall, unless such liquor was sold or supplied to a member of the club in person for consumption by him or to a person holding a licence for the sale of such liquor, be guilty of an offence.

(2) If subsection (1) above is contravened as regards any club, every person entered in the register of clubs as an official, or member of the committee of management or governing body of that club at the time of the contravention, shall be guilty of an offence under that subsection:

Provided that a person shall not be convicted of such an offence if he proves that the contravention in question took place without his knowledge or consent.

(3) Where in any proceedings under this section it is proved that any alcoholic liquor has been received or delivered in the premises of a registered club and taken outside those premises, for the purposes of the proceedings such liquor shall, unless the contrary is shown, be deemed to have been so taken for consumption off the premises.

96. If any person—

- (a) sells or supplies alcoholic liquor in a licensed canteen for consumption outside the canteen, or
- (b) takes alcoholic liquor from any such canteen for consumption outside the canteen,

he shall be guilty of an offence.

PART VI

Prohibition of sale or supply of alcoholic liquor in licensed canteens for consumption off the premises.

97.—(1) If the holder of an off-sale licence or his employee or agent supplies to any person, gratuitously or otherwise, alcoholic liquor to be consumed on the premises in respect of which the licence is held, the licence-holder, employee or agent, as the case may be, shall be guilty of an offence.

Consumption in, taking away of, and selling liquor from, off-sale premises.

(2) If any person induces the holder of an off-sale licence in respect of any premises, or the employee or agent of the licence-holder, to sell or supply to him any alcoholic liquor, and consumes such liquor or any part thereof in those premises, he shall be guilty of an offence.

(3) If the holder of an off-sale licence, or his employee or agent takes, or causes or permits any other person to take, any alcoholic liquor from the premises in respect of which he holds such licence, either—

- (a) for the purposes of its being sold or hawked on his account or for his benefit or profit, or
- (b) for the purpose of its being consumed for his benefit or profit in any house or other premises belonging to him, or hired, used or occupied by him, or in which he may be interested, the licence-holder, employee or agent, as the case may be, shall be guilty of an offence.

(4) A holder of an off-sale licence or his employee or agent shall be guilty of an offence if he sells wine (including made-wine) in an open vessel.

98.—(1) The holder of a restricted hotel licence or his employee or agent shall be guilty of an offence if he sells or supplies any alcoholic liquor for consumption on the premises in respect of which a licence is held, except as follows, that is to say—

Restriction on sale or supply of liquor in premises subject to restricted hotel licence.

- (a) the licence-holder or employee or agent may sell or supply such liquor to persons taking table meals in the premises for consumption by such a person as an ancillary to his meal;
- (b) the licence-holder or employee or agent may sell or supply such liquor to persons residing in the premises,

PART VI

for consumption by such a person or by a private friend of such a person who is bona fide entertained by, and at the expense of, that person ;

- (c) the licence-holder or employee or agent may supply such liquor to any private friend of a person residing in the premises who is bona fide entertained by, and at the expense of, that person, for consumption by such a friend entertained as aforesaid.

(2) The holder of a restricted hotel licence or his employee or agent shall be guilty of an offence if he trafficks in or supplies any alcoholic liquor for consumption off the premises in respect of which the licence is held, except to persons residing in the premises, for consumption by such a person or by a private friend of such a person who is bona fide entertained by, and at the expense of, that person as an ancillary to a meal supplied at, but to be consumed off, the premises.

Restriction on sale or supply of liquor in premises subject to restaurant licence.

99. The holder of a restaurant licence or his employee or agent shall be guilty of an offence if—

- (a) he sells or supplies any alcoholic liquor for consumption on the premises, except to persons taking meals in the premises, for consumption by such a person as an ancillary to his meal ; or
- (b) he trafficks in or supplies any alcoholic liquor for consumption off the premises in respect of which the licence is held.

Restriction on sale or supply of liquor in premises subject to a refreshment licence.

100. The holder of a refreshment licence or his employee or agent shall be guilty of an offence if—

- (a) he trafficks in or sells any alcoholic liquor for consumption off the premises in respect of which the licence is held, or
- (b) he sells or supplies alcoholic liquor at any time when other refreshments, including food and non-alcoholic beverages, are not available for sale.

Restriction on sale or supply of liquor in premises subject to entertainment licence.

101.—(1) The holder of an entertainment licence or his employee or agent shall be guilty of an offence if he trafficks in or supplies any alcoholic liquor for consumption off the premises in respect of which the licence is held.

(2) A licensing board, when granting an entertainment licence, may attach conditions to the licence, including conditions placing restrictions on the permitted hours, in order to secure that the sale or supply of alcoholic liquor is ancillary to the entertainment, and the holder of the licence or his employee or agent shall be guilty of an offence if he contravenes any such condition.

PART VII

CLUBS

102.—(1) The sheriff clerk for each sheriff court district (hereafter in this Part of this Act called “the registrar”) shall keep a register of clubs situated within that district in respect of which a certificate of registration has been granted under this Part of this Act. Register of clubs.

(2) A sheriff clerk depute may exercise any of the functions of the registrar under this Part of this Act.

(3) There shall be entered in the said register in respect of each club registered therein—

- (a) the name of the club ;
- (b) the address of the premises in respect of which the certificate of registration has been granted ;
- (c) a statement whether the club is the tenant or the proprietor and occupier of those premises ;
- (d) the name and address of the secretary of the club ;
- (e) the date of the certificate granted to the club ; and
- (f) a statement whether the certificate has been granted for the first time or on renewal.

(4) The registration of a club under this Part of this Act shall not constitute the club licensed premises or authorise any sale of alcoholic liquor therein which would otherwise be illegal.

103.—(1) An application for a certificate of registration in respect of any club shall be signed by the chairman, secretary or solicitor of the club, and shall be lodged with the registrar. Application for certificate of registration.

(2) There shall be specified in any such application—

- (a) the name of the club ;
- (b) the objects of the club ;
- (c) the address of the premises occupied by the club.

(3) There shall be lodged along with any such application—

- (a) two copies of the rules of the club ;
- (b) a list containing the name and address of each official and each member of the committee of management or governing body of the club ; and
- (c) a statement in the form set out in Schedule 6 to this Act certifying that the club is to be or, in the case of an existing club, has been and is to be conducted as a bona fide club and not mainly for the supply of alcoholic liquor.

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(4) Any such statement as is referred to in subsection (3)(c) above shall be signed by two members of the licensing board for the area in which the premises occupied by the club are situated, and, if the premises occupied by the club are not owned by it, the statement shall be signed also by the owner of the premises or, if the owner is under a legal disability, by his legal representative:

Provided that any member of a licensing board who has signed the statement may, within ten days of that signature, withdraw his name therefrom.

(5) Any change made in the rules of the club or in the list lodged with the application under subsection (3) above shall be intimated to the registrar forthwith.

(6) If any person in an application under this section or in any of the accompanying documents specified in subsection (3) above makes any statement which he knows to be false in a material particular, or recklessly makes any statement which is false in a material particular, he shall be guilty of an offence.

(7) If subsection (6) above is contravened as regards any club, every person entered in the register of clubs as an official or member of the committee of management or governing body of that club at the time of the contravention shall be guilty of an offence under that subsection:

Provided that a person shall not be convicted of such an offence if he proves that the contravention in question took place without his knowledge or consent.

Application for
renewal of
certificate of
registration.

104.—(1) Subject to subsection (2) below, an application for the renewal of a certificate of registration granted to a club under this Part of this Act shall be lodged with the registrar by the secretary of the club not later than 21 days before the date of expiry of that certificate.

(2) Notwithstanding subsection (1) above, the sheriff may entertain such an application if it is lodged later than 21 days before the said date, but shall not grant the application unless he is satisfied that the failure to lodge it timeously was due to inadvertence.

(3) The secretary of the club shall lodge, along with such application, a certificate stating either that no changes have been made in the rules of the club or in the list containing the names and addresses of the officials and the members of the committee of management or governing body of the club since the last application was made under this section or section 103 of this Act, as the case may be, or that any such change has already been intimated to the registrar.

(4) Section 103 of this Act shall, with any necessary modifications, apply in respect of an application for the renewal of a certificate of registration as it applies in respect of an application under that section.

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105.—(1) The applicant shall give intimation of the lodging of an application for the grant of a certificate of registration in respect of a club by—

Procedure on application for grant or renewal of certificate of registration.

- (a) publishing a notice thereof twice in the 7 days immediately following the date of such lodging in a newspaper circulating in the area in which the club is situated ;
- (b) displaying a notice thereof in a conspicuous place on or near the premises occupied by the club for the period of 21 days immediately following that date.

(2) On an application for the grant or for the renewal of such a certificate being lodged in accordance with the foregoing provisions of this Part of this Act, the registrar shall forthwith give notice of such application—

- (a) to the chief constable ;
- (b) to the council of the district or islands area within which the premises are situated ; and
- (c) to the fire authority for the area.

(3) Objection to the grant or renewal of a certificate of registration in respect of any club may be made on any of the grounds specified in section 108 of this Act by—

- (a) any of the persons to whom notice has been given under subsection (2) above ;
- (b) any person owning or occupying property in the neighbourhood of the premises occupied by the club ;
- (c) a community council for the area in which the premises are situated which has been established in accordance with the provisions of the Local Government (Scotland) Act 1973 ; and
- (d) any church which in the opinion of the sheriff represents a significant body of opinion among persons residing in the neighbourhood of those premises.

(4) Any such objections shall be lodged with the registrar by the objector and a copy of the objections shall be sent to the secretary of the club in respect of which the application is made within 21 days of the first publication of the notice in pursuance of subsection (1)(a) above.

(5) Any objections to the renewal of a certificate of registration in respect of any club by any of the persons to whom notice has been given under subsection (2) above shall be lodged with the registrar and a copy of the objections sent to the secretary

PART VII of the club concerned within 21 days of the date of the aforesaid notice.

(6) On an application for the grant of a certificate of registration in respect of any club or for the renewal of such a certificate—

- (a) if no objections to the grant or renewal of such certificate are lodged in accordance with the foregoing provisions of this section, or if all such objections are withdrawn, the sheriff shall, if he is satisfied that the application has been duly made in accordance with the foregoing provisions of this Part of this Act and that the rules of the club are in conformity with the provisions of this Act, grant the application ;
- (b) if such objections are lodged and not withdrawn, the sheriff shall, as soon as may be, hear parties upon the application and objections and may order such enquiry as he thinks fit, and shall thereafter grant or refuse the certificate, and may award expenses against the unsuccessful party.

(7) The sheriff shall, on granting any such application, cause the entries required by section 102 of this Act to be made in the register of clubs and thereupon the registrar shall issue to the applicant a certificate of registration in the form set out in Schedule 6 to this Act.

Currency of
certificate of
registration.

106. A certificate of registration shall, subject to the provisions of this Part of this Act, remain in force for a period of three years from the date of issue :

Provided that, where an application for the renewal of such a certificate has been made, that certificate shall remain in force pending the final decision of the sheriff on such application for a period not exceeding three months from the date on which the certificate would otherwise have expired and, if the sheriff thinks fit, for a further period not exceeding three months.

Club rules
qualifying
for
registration.

107.—(1) A certificate of registration shall not be granted under this Part of this Act to any club unless the rules of the club provide—

- (a) that the business and affairs of the club shall be under the management of a committee or governing body who shall be elected for not less than one year by the governing body of members and shall be subject in whole or in part or in a specified proportion to annual re-election, or of whom not more than one-third may be non-elected persons from outwith the club and the remainder shall be elected and subject to annual re-election as aforesaid ;

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- (b) that no member of the committee or governing body and no manager or servant employed in the club shall have any personal interest in the sale of alcoholic liquor therein or in the profits arising from such sale ;
- (c) that the committee or governing body shall hold periodical meetings ;
- (d) that, unless the club is one to which subsection (4) below applies, all matters of the club shall be elected by the whole body of members or by the committee or governing body, with or without specially added members ;
- (e) that, unless the club is one to which subsection (4) below applies, the names and addresses of persons proposed as ordinary members of the club shall be displayed in a conspicuous place in the club premises for at least a week before their election, and that an interval of not less than two weeks shall elapse between the nomination and election of ordinary members ;
- (f) that no alcoholic liquor shall be sold or supplied in the club to any person under 18 ;
- (g) that no person under 18 shall be admitted a member of the club unless the club is one which is devoted primarily to some athletic purpose or to which subsection (4) below applies ;
- (h) that no persons shall be allowed to become honorary or temporary members of the club or be relieved of the payment of the regular entrance fee or subscription, except those possessing certain qualifications defined in the rules and subject to conditions and regulations prescribed therein ;
- (i) that there shall be a defined subscription payable in advance by members ;
- (j) that correct accounts and books shall be kept showing the financial affairs and intromissions of the club ;
- (k) that a visitor shall not be supplied with alcoholic liquor in the club premises unless on the invitation and in the company of a member and that the member shall, upon the admission of such visitor to the club premises or immediately upon his being supplied with such liquor, enter his own name and the name and address of the visitor in a book which shall be kept for the purpose and which shall show the date of each visit ; and
- (l) that no alcoholic liquor shall be sold or supplied in the club premises for consumption off the premises, except to a member of the club in person for consumption by

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him or to a person holding a licence or a wholesaler's excise licence for the sale of such liquor :

Provided that this subsection shall not apply to any lodge of Freemasons duly constituted under a charter from the Grand Lodge of Scotland.

(2) Notwithstanding anything in subsection (1) above, the rules of a registered club may provide for the admission to the premises of the club of persons who are members of another club, and for the sale and supply of alcoholic liquor to such persons by or on behalf of the club for consumption on the premises, if—

- (a) the other club is a registered club whose premises are in the locality and are temporarily closed ; or
- (b) both clubs exist for learned, educational, or political objects of a similar nature ; or
- (c) each of the clubs is primarily a club for persons who are qualified by service or past service, or by any particular service or past service, in Her Majesty's Forces, and are members of an organisation established by Royal Charter, and consists wholly or mainly of such persons ; or
- (d) each of the clubs is primarily a club for persons who carry on the same trade, profession or occupation, and that trade, profession or occupation is the same in the case of either club ; or
- (e) each of the clubs is a working men's club, that is to say, a club which is, as regards its purposes, qualified for registration as a working men's club under the Friendly Societies Act 1974, and is a registered society within the meaning of that Act or of the Industrial and Provident Societies Act 1965 ; or
- (f) each of the clubs is one to which subsection (4) below applies.

(3) Notwithstanding anything in this Act, the authority of a licence shall not be required for such a sale of alcoholic liquor as is mentioned in subsection (2) above and, where the rules of a club provide as aforesaid, alcoholic liquor may be supplied in the premises of the club to such persons as are mentioned in that subsection and their guests for consumption on the premises as it may to members of the club and their guests.

(4) This subsection applies to the students union of a university, central institution, college of education or a further education college under the management of an education authority, which is recognised and certified as such to the registrar by the Senate or Academic Council of the university or the governing body of the central institution or college of education, or by the

education authority, as the case may be; and any expressions used in this subsection which are also used in the Education (Scotland) Act 1962 shall have the same meanings in this subsection as in that Act. PART VII
1962 c. 47.

108. The sheriff shall not consider any objection to the grant or renewal of a certificate of registration unless it is made on one or more of the following grounds:— Competent
ground of
objection to
registration.

- (a) that the application made by the club is in any respect specified in such objection not in conformity with the provisions of this Act;
- (b) that the rules of the club are in any respect specified in such objection not in conformity with the provisions of this Act;
- (c) that the club has ceased to exist or has less than 25 members;
- (d) that the premises are, or the situation thereof is, not suitable or convenient for the purposes of a club;
- (e) that the club occupies premises in respect of which, within the period of 12 months immediately preceding the formation of the club, an order had been made under section 67(3) of this Act or the renewal of a licence under this Act had been refused, or in respect of which at the time when the premises were first occupied by the club an order was in force under section 110 of this Act that they should not be used for the purposes of a club;
- (f) that the club is not conducted in good faith as a club, or that it is kept or habitually used for any unlawful purpose or mainly for the supply of alcoholic liquor;
- (g) that there has been a failure to intimate to the registrar forthwith any change in the rules of the club or in the list containing the names and addresses of the officials and members of the committee of management or governing body of the club;
- (h) that the club is to be used mainly as a drinking club;
- (i) that there is frequent drunkenness in the club premises, or that drunken persons are frequently seen to leave the premises;
- (j) that the club is conducted in a disorderly manner;
- (k) that illegal sales of alcoholic liquor have taken place in the club premises;
- (l) that persons who are not members of the club are habitually admitted to the club premises merely for the purpose of obtaining alcoholic liquor;
- (m) that the supply of alcoholic liquor to the club is not under the control of the members of the club or of the

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committee of management or governing body of the club ;

- (n) that the officials and committee of management or governing body of the club, or the manager, or a servant employed in or by the club, have or will have a personal interest in the purchase by the club or in the sale in the premises of the club of alcoholic liquor or in the profits arising therefrom, or, where the said premises are not owned by the club, that the owner or the immediate lessor of the premises has or will have such a personal interest ;
- (o) that any of the rules of the club referred to in section 107(1) of this Act are habitually broken ;
- (p) that persons are habitually admitted or supplied as members of the club without an interval of at least two weeks between their nomination and election as ordinary members, or for a subscription of a nominal amount ;
- (q) that the officials and committee of management or governing body of the club, or the members of the club, are persons of bad character or persons who follow no lawful occupation and have no means of subsistence ;
- (r) that the club has been, is or will be used as a resort of persons of bad character ;
- (s) that alcoholic liquor is sold or supplied for consumption on or off the premises outwith the permitted hours.

Cancellation
of certificate
of registration.

109.—(1) Any person entitled under section 105(3) of this Act to object to the renewal of the certificate of registration held by a registered club may apply to the sheriff for a finding that the club is being so managed or carried on as to give rise to a ground of objection to the renewal of its certificate, being one of the grounds of objection specified in section 108 of this Act ; and the sheriff may, if he is satisfied that such ground of objection has been established, make the finding applied for and shall specify therein the grounds for the finding.

(2) Where on an application under subsection (1) above such a finding as is therein mentioned has been made in respect of any club, or where a conviction has taken place under section 95 of this Act in respect of alcoholic liquor sold or supplied in any club, a certified copy of the application and finding or of the complaint and conviction, as the case may be, shall, within six days from the date of the finding or the conviction, be transmitted by the clerk of the court (unless he is also the registrar) to the registrar.

(3) Where—

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- (a) such a finding as is mentioned in subsection (1) above has been made in respect of any club ; or
- (b) a conviction has taken place under section 95 of this Act in respect of alcoholic liquor sold or supplied in any club ;

the registrar shall enter such finding or conviction, as the case may be, in the register of clubs and lay the same before the sheriff ; and the sheriff may, if he thinks fit, after such further enquiry as he may think necessary, and having regard to the grounds specified in such finding or the magnitude of the offence, as the case may be, cancel the certificate of registration of that club.

(4) Where the certificate of registration of any club has been cancelled under subsection (3) above, that club may apply for renewal of that certificate, but not earlier than 12 months after the date of such cancellation.

(5) The sheriff may, on an application under subsection (1) above, award expenses against the unsuccessful party.

110.—(1) Where the sheriff has refused an application by a club for the renewal of its certificate of registration or where under section 109 of this Act he has cancelled the certificate held by a club, he may, if he thinks fit, order that the premises occupied by that club shall not be occupied and used for the purposes of any registered club. Disqualification of premises for purposes of club.

(2) An order made under subsection (1) above shall be in force for such period as the order shall specify, not exceeding—

- (a) if the premises have not been subject to a previous order under that subsection, 12 months ;
- (b) if the premises have been subject to any such previous order, five years.

(3) Such an order may, on good cause being shown, be subsequently cancelled or varied by the sheriff.

111.—(1) Where a finding has been made under section 109(1) of this Act that a registered club is being so managed or carried on as to give rise to a ground of objection to the renewal of its certificate of registration, then if a ground of objection mentioned in paragraph (f), (i), (j) or (l) of section 108 of this Act is specified in such finding, every person entered in the register of clubs as an official or a member of the committee of management or governing body of the said club, at the time when the situation which gave rise to the ground of objection mentioned in any of those paragraphs existed, shall be guilty of an offence. Penalties for offences by officials of registered clubs.

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(2) A person shall not be convicted of an offence under this section if he proves that the club was managed or carried on as aforesaid without his knowledge or consent and that he exercised all due diligence to prevent the club from being so managed or carried on.

Persons under 14 not to be allowed in club bars.

112.—(1) A person under 14 shall not be allowed to be in a bar of a registered club during the permitted hours.

(2) If subsection (1) above is contravened, every person entered in the register of clubs as an official or member of the committee of management or governing body of the club at the time of the contravention shall be guilty of an offence:

Provided that a person shall not be convicted of such an offence if he proves that the contravention in question took place without his knowledge or consent.

(3) No person shall cause any person under 14 to be in a bar of a registered club during the permitted hours, and any person contravening this subsection shall be guilty of an offence.

Persons under 18 not to be employed to serve alcoholic liquor in clubs.

113.—(1) A person under 18 shall not be employed in a registered club if the purpose, or one of the purposes, of his employment is to serve alcoholic liquor to persons in that club.

(2) If this section is contravened as regards any club, every person entered in the register of clubs as an official or member of the committee of management or governing body of that club at the time of the contravention shall be guilty of an offence:

Provided that a person shall not be convicted of an offence under this section if he proves that the contravention in question took place without his knowledge or consent.

(3) For the purposes of this section, a person shall be deemed to be employed in a club where he works notwithstanding that he receives no wages for his work.

(4) Where in any proceedings under this section it is alleged that a person was at any time under 18, and he appears to the court then to have been under that age, for the purposes of the proceedings he shall be deemed to have been then under that age unless the contrary is shown.

Power of police to enter clubs.

114.—(1) If a justice of the peace or sheriff is satisfied by evidence on oath that there are reasonable grounds for believing—

(a) that any registered club is being so managed or carried on as to give rise to a ground of objection to the renewal of its certificate of registration, being one of the grounds of objection specified in section 108 of this Act; or

(b) that an offence under this Act has been or is being committed in any registered club ; PART VII

he may by warrant authorise a constable to enter the premises of such club at any time, if need be by force, and to search the premises and seize any documents relating to the business of the club and to take the names and addresses of any persons found in the premises.

(2) If any person found in the premises of a club refuses to give his name and address on being requested to do so by a constable acting under a warrant granted in pursuance of the foregoing subsection, or gives a false name or address on being so requested, he shall be guilty of an offence.

115.—(1) The register of clubs and a copy of the rules of any club lodged with the registrar under section 103(3) of this Act shall, at all reasonable times, be open to inspection on payment of a fee of 20p. Inspection of register of clubs and of rules and list of members of club.

(2) A chief constable or any constable authorised by him in writing or an officer of Customs and Excise shall be entitled to inspect the register of clubs and a copy of the rules of any registered club lodged as aforesaid at all reasonable times without payment.

(3) There shall be kept on the premises of every registered club a copy of a current list containing the names and addresses of every member of the club ; and a chief constable or any constable authorised by him in writing shall be entitled to inspect that list at all reasonable times without payment.

116. Any citation of a registered club may be validly made in the registered name thereof in accordance with the Amendment (Scotland) Act 1882, or by a copy of the citation being left by an officer of court at the registered address of the club. Citation of registered club. 1882 c. 77.

117.—(1) The jurisdiction conferred on the sheriff by this Part of this Act shall not be excluded in relation to any club by reason only of the fact that he is a member of that club. Sheriff's jurisdiction and decision.

(2) The decision of the sheriff in dealing with an application for the grant of a certificate of registration or for the renewal of such a certificate or in cancelling such a certificate shall be final.

118. In this Part of this Act, references to the secretary of a club shall include references to any officer of the club or other person performing the duties of a secretary. Interpretation of Part VII.

PART VIII

MISCELLANEOUS, TRANSITIONAL & GENERAL

Trading hours
for off-sale
premises and
off-sale parts
of public
houses and
hotels.

119.—(1) The provisions of this Act relating to the permitted hours shall not apply to off-sale premises, but the provisions of this section shall apply.

(2) On granting or transferring a public house or a hotel licence in respect of any premises a licensing board shall, if the applicant so requests and if the board is satisfied—

- (a) that a part of the premises (in this section referred to as “the off-sale part”) is structurally adapted for the sale and supply of alcoholic liquor for consumption off the premises ; and
- (b) that there is no internal communication to which customers have access connecting the off-sale part with a part of the premises used, or intended to be used, for the sale and supply of alcoholic liquor for consumption on the premises, or that any such internal communication is capable of being closed to customers ;

insert in the licence the following conditions—

- (i) a condition that the off-sale part (which shall be specified in the condition) shall not be used for the sale or supply of alcoholic liquor for consumption on the premises ;
- (ii) a condition that any internal communication to which customers have access connecting the off-sale part with a part of the premises used for the sale and supply of alcoholic liquor for consumption on the premises shall be closed to customers during any time when customers are present in any part of the premises ; and
- (iii) a condition that no customers shall be permitted to use any internal communication for the purpose of passing from one part of the premises to another part thereof ;

and, so long as the licence is subject to the said conditions, the provisions of this Act relating to the permitted hours shall not apply to the off-sale part, but the provisions of this section shall apply.

(3) Off-sale premises and the off-sale part of premises shall not be opened for the serving of customers with alcoholic liquor earlier than eight o'clock in the morning and shall be closed for the serving of customers with such liquor not later than ten o'clock in the evening ; and such premises or the off-sale part of premises shall not be opened for the serving of customers with such liquor on Sundays.

(4) The holder of the licence or his employee or agent shall be guilty of an offence if he contravenes this section or any condition attached to a licence by virtue of subsection (2) above.

120.—(1) If any person sells or supplies alcoholic liquor in the premises of an unregistered club, or authorises the sale or supply of alcoholic liquor in any such premises, to a member or other person, or if any person pays for alcoholic liquor so sold or supplied, he shall be guilty of an offence. PART VIII
Liquor in
unregistered
clubs.

(2) If alcoholic liquor is kept in any such premises for sale or supply in those premises, every officer and member of the club shall be guilty of an offence.

(3) A person shall not be guilty of an offence under subsection (2) above if he proves that the liquor was kept as mentioned in that subsection without his knowledge or consent.

(4) If a justice of the peace is satisfied by evidence on oath that there are reasonable grounds for believing that alcoholic liquor is being sold or supplied in the premises of an unregistered club or is being kept in any such premises for the purpose of being sold or supplied there, he may by warrant authorise a constable to enter those premises at any time, if need be by force, and to search the premises and seize any documents relating to the business of the club and to take the names and addresses of any persons found in the premises.

(5) If a justice of the peace is satisfied by evidence on oath that there are reasonable grounds for believing that alcoholic liquor is being kept in the premises of an unregistered club for the purposes of being sold or supplied there, he may by warrant authorise a constable to seize and remove any such liquor which the constable has reasonable grounds for supposing to be in the premises for the purpose of being sold or supplied there, together with the vessels containing the liquor.

(6) If any of the officers or members of a club from the premises of which any alcoholic liquor has been removed under subsection (5) above is convicted of an offence under subsection (2) above in respect of such liquor or any part thereof, that liquor or such part thereof, as the case may be, and the vessels containing it shall be forfeited and sold and the proceeds thereof paid into the general fund of the district or islands area, as the case may be, in which the said premises are situated.

(7) If any person found in the premises of a club refuses to give his name and address on being requested to do so by a constable acting under a warrant granted in pursuance of subsection (4) above, or gives a false name or address on being so requested, he shall be guilty of an offence.

PART VIII

Sale or supply of alcoholic liquor in certain theatres.

Proof of trafficking in alcoholic liquor without licence.

Alcoholic liquor in confectionery.

Local authority premises.
1973 c. 65.

Supply of alcoholic liquor on order by certain officials and others.

121. A theatre erected before 1st January 1904 shall be treated for the purposes of the sale or supply of alcoholic liquor in the theatre as if an entertainment licence were in force in respect of the theatre.

122. It shall be sufficient evidence that a person was trafficking in any alcoholic liquor in any premises or place without holding a licence in that behalf if it is proved—

- (a) that a person other than the owner or occupier of such premises or place was at the time charged found therein drunk or drinking, or having had drink supplied to him therein; and
- (b) either that such premises are or such place is, by repute, kept for the illegal sale of alcoholic liquor or that at the time charged such premises or place contained drinking utensils and fittings usually found in licensed premises.

123.—(1) No provision of this Act as to the sale, supply purchase, delivery or consumption of alcoholic liquor, except subsection (2) below, and no enactment requiring the authority of a wholesaler's excise licence for the sale or supply of alcoholic liquor, shall have effect in relation to alcoholic liquor in confectionery which—

- (a) does not contain alcoholic liquor in a proportion greater than 200 millilitres of liquor (computed as proof spirit) per kilogramme of the confectionery, and
- (b) either consists of separate pieces weighing not more than 50 grammes or is designed to be broken into such pieces for the purpose of consumption.

(2) Alcoholic liquor in confectionery shall not be sold to a person under 16, and if any person knowingly contravenes this subsection he shall be guilty of an offence.

124. Subsection (6) of section 91 of the Local Government (Scotland) Act 1973 (certificates not to be granted for sale of liquor in premises provided under that section) shall cease to have effect, and a licensing board may grant any licence in respect of such premises.

125.—(1) The holder of a licence in respect of any premises may supply alcoholic liquor from those premises during any time when such supply would, apart from this section, be prohibited by or under this Act, on an order stating why the liquor is required and signed—

- (a) by a constable of or above the rank of inspector or by a constable in charge of a police station; or
- (b) by the procurator fiscal, or

PART VIII

- (c) by a medical official ; or
- (d) in case of sickness, accident or emergency, by a duly qualified medical practitioner.

(2) Any such order shall be a sufficient defence in any prosecution in respect of the supply of the alcoholic liquor to which it relates if within 48 hours after the supply of such liquor the order is sent by post to the procurator fiscal together with a note of the description and quantity of the liquor supplied and the name and address of the person to whom the liquor was supplied.

(3) The procurator fiscal shall, not later than seven days before the quarterly meeting of any licensing board having jurisdiction in the district for which he acts or any part thereof, transmit to the clerk of such board a list of orders received by him under subsection (2) above during the current quarter, being orders received from persons holding licences from that board, and the said list shall contain a note of the names and designations of all persons signing such orders.

126. If the holder of a licence in respect of any premises is charged with knowingly permitting drunkenness in those premises, and it is proved that any person was drunk in the premises it shall lie on the holder of the licence to prove that he and the persons employed by him took all reasonable steps to prevent drunkenness in the premises. Burden of proof in case of drunkenness in licensed premises.

127.—(1) For the purposes of any trial in connection with an alleged contravention of any provision of this Act, the following provisions of this section shall apply. Presumption as to contents of containers.

(2) Any liquid found in a container (sealed or opened) in licensed premises, a registered club or licensed canteen, or in any sealed container found elsewhere shall, subject to the provisions of this section, be presumed to conform to the description of the liquid on the container.

(3) Where a prosecutor intends to rely on subsection (2) above, he shall give notice of his intention to the accused or his agent at least 14 days before the trial.

(4) Where an accused or his agent intends to challenge the presumption set out in subsection (2) above, he shall give notice of his intention to the prosecutor at least 7 days before the trial, and if he fails to give such notice he shall not at the trial be entitled to challenge that presumption.

(5) A notice given under subsection (3) or (4) above shall be in writing and sent by recorded delivery, and the execution of the recorded delivery shall be sufficient evidence of the time of posting of the notice and of its intimation to the addressee.

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(6) Any such notice shall be presumed to have been intimated to the addressee on the day after the date on which it was posted, except that in the case of a notice posted on a Friday or Saturday, it shall be presumed to have been so intimated on the Monday next following.

Trial of offences.

128.—(1) The following provisions shall have effect in relation to the trial of offences under this Act—

- (a) all offences shall be tried in a summary manner ;
- (b) all offences other than those referred to in paragraph (c) below may be tried in the sheriff court or in the district court ;
- (c) the following offences shall be tried only in the sheriff court, that is to say, any offence under section 2, 7(3), 19(1) or section 36(3) of this Act.

(2) Notwithstanding subsection (1) above, a contravention of any of the provisions of this Act which, if it had been triable on indictment, could competently have been libelled as an additional or alternative charge in the indictment, may be so libelled and may be tried accordingly.

Conviction of licence-holder to be transmitted to clerk of licensing board.

129. Where the holder of a licence in respect of any premises is convicted of any offence under this Act in relation to those premises, a certified extract of such conviction shall, within six days after the date of the conviction, be transmitted by the clerk of the court to the clerk of the licensing board within whose jurisdiction such premises are situated.

Limitation of actions against sheriffs, etc.

130. No proceedings against any sheriff, justice of the peace, sheriff clerk, member of a licensing board, clerk of a licensing board, procurator fiscal, constable or other person on account of anything done in the execution of this Act shall lie, unless they are commenced within two months after the cause of such proceedings has arisen.

Temperance areas.
1959 c. 51.

131.—(1) Part VIII of the Licensing (Scotland) Act 1959 shall cease to have effect, but notwithstanding that repeal, where immediately before the commencement of this section a limiting resolution or a no-licence resolution was in force in any area, the following provisions of this section shall apply.

(2) The limiting resolution or no-licence resolution shall continue to apply for a period of three years after the commencement of this section and thereafter until the district or islands council concerned with any area or part thereof otherwise resolve.

(3) Before making any resolution as mentioned in subsection (2) above, the district or islands council shall consult with the community council or councils for the area concerned.

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(4) Where such a resolution is made in respect of any area, the licensing board for the area may, for a period of five years from the making of the resolution, refuse to grant a licence on the ground that, having regard to the distribution of facilities for the sale and supply of alcoholic liquor in the area, it is inexpedient that the licence applied for should be granted.

(5) Notwithstanding the provisions of this section, where a limiting resolution or a no-licence resolution is in force in any area, the licensing board for the area may, if the board is satisfied that in the special circumstances of the case a licence is reasonably required, grant restaurant or restricted hotel licences for premises situated in the area, and such licences may be granted in addition to the number which the board may grant while a limiting resolution is in force.

(6) Expressions used in this section and in Part VIII of the said Act of 1959 have the same meanings in this section as they have in that Part.

132.—(1) Notwithstanding anything in section 58 of the Licensing (Scotland) Act 1959, certificates granted by a licensing court at their last general half-yearly meeting in March 1977 shall have effect in accordance with the provisions of this section. Currency of final licensing certificates. 1959 c. 51.

(2) The chairman of the licensing court at the said meeting shall, in accordance with arrangements made by the licensing court, draw lots in order to determine, in accordance with the provisions of this section, the duration of the certificates granted by the court.

(3) The licensing court shall divide into nine groups or less the respective durations of the certificates which they grant and in respect of which lots are drawn under subsection (2) above, and the durations of the certificates shall, subject to the provisions of this section, be from 28th May 1977 until the quarterly meeting of the licensing board specified as respects each group in the following table:—

Duration of certificates

Groups	Quarterly meeting
Group 1	March 1978
Group 2	June 1978
Group 3	October 1978
Group 4	January 1979
Group 5	March 1979
Group 6	June 1979
Group 7	October 1979
Group 8	January 1980
Group 9	March 1980

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(4) As from 1st July 1977, certificates granted in pursuance of this section shall have effect as if they were licences granted under this Act.

(5) Certificates granted in pursuance of this section shall expire on the first day of the appropriate quarterly meeting mentioned in subsection (3) above if no application is made for the renewal of the licence, and where such an application is made, the certificate shall continue to have effect—

- (a) until the application for renewal is granted by the licensing board ; or
- (b) if the application for renewal is refused, until the time within which an appeal may be made has elapsed or, if an appeal has been lodged, until the appeal has been abandoned or determined.

Betting and
gaming licences
and permits.
1963 c. 2.

133.—(1) The authority responsible for the grant or renewal of bookmaker's permits, betting agency permits and betting office licences in Scotland under the Betting, Gaming and Lotteries Act 1963 shall be the licensing board for the area concerned, and accordingly for sub-paragraph (b) of paragraph (1) of Schedule 1 to that Act there shall be substituted the following sub-paragraph—

“(b) in any area in Scotland, the licensing board for that area constituted under section 1 of the Licensing (Scotland) Act 1976.”

1969 c. 65.

(2) The authority responsible for the grant, renewal, cancellation and transfer of licences in Scotland under the Gaming Act 1968 shall be the licensing board for the area concerned, and accordingly for head (b) of paragraph 1 (1) of Schedule 2 to that Act there shall be substituted the following head—

“(b) in any area in Scotland.”

(3) The appropriate authority in Scotland for the purposes of Schedule 9 to the Gaming Act 1968 in relation to public houses and hotels shall be the licensing board for the area concerned, and accordingly for sub-paragraph (c) of paragraph 1 of that Schedule there shall be substituted the following sub-paragraph—

“(c) in relation to any premises in Scotland in respect of which a public house licence or a hotel licence is for the time being in force, means the licensing board for the area in which the premises are situated ;”

(4) Subsections (4) and (6) to (8) of section 39 of this Act shall apply in relation to appeals under paragraph 24 of Schedule 1 to the Betting, Gaming and Lotteries Act 1963, paragraph 33 or 34 of Schedule 2 and paragraph 15 of Schedule 9 to the

Gaming Act 1968 as they apply in relation to appeals under PART VIII
 any provision of this Act, and in his decision on any such 1969 c. 5.
 appeal under the said Acts of 1963 and 1968 the sheriff may
 include such order as to the expenses of the appeal as he
 thinks proper.

134. Any notice or document required or authorised to be Notices, etc.
 given or served under this Act may be served by post.

135. Any power to make an order conferred by any provision Orders.
 of this Act shall include power to make an order varying or
 revoking any order previously made under that provision.

136.—(1) The enactments mentioned in Schedule 7 to this Amendments.
 Act shall have effect subject to the amendments respectively and repeals.
 specified in that Schedule, being minor amendments or amend-
 ments consequential on the provisions of this Act.

(2) The enactments specified in Schedule 8 to this Act are
 hereby repealed to the extent specified in the third column of
 that Schedule.

137. There shall be defrayed out of moneys provided by Expenses.
 Parliament any increase attributable to the provisions of this
 Act in the sums payable out of moneys so provided under any
 other enactment.

138.—(1) Nothing in this Act shall make unlawful— Exemptions

(a) trafficking in alcoholic liquor in a canteen held under and savings.
 the authority of a Secretary of State ;

(b) trafficking in alcoholic liquor in a theatre erected before
 1st January 1904 ;

(c) trafficking, with passengers in an aircraft, or, subject
 to section 93 of this Act, in a vessel or railway passen-
 ger vehicle, in alcoholic liquor for consumption on
 board the aircraft or vessel or in the railway passenger
 vehicle, if the aircraft or vessel is employed for the
 carriage of passengers and is being flown or navigated
 from a place in the United Kingdom to another such
 place or from and to the same place in the United
 Kingdom on the same day, or, as the case may be,
 if the railway passenger vehicle is a vehicle in which
 passengers can be supplied with food.

(2) Nothing in this Act shall—

(a) affect the right of any person to carry on his business
 during the pendency of an appeal against the refusal of
 a licensing board to renew his licence ;

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- (b) save as expressly provided in this Act, prohibit the sale of alcoholic liquor by a wholesaler ; or
- (c) affect any penalties recoverable by or on behalf of the Commissioners, or any laws relating to excise.

Interpretation.

139.—(1) In this Act, unless the context otherwise requires—

“alcoholic liquor” includes spirits, wine, porter, ale, beer, cider, perry and made-wine, but does not include any liquor which on analysis of a sample thereof at any time is found to be of an original gravity not exceeding 1,016 degrees and to be of a strength not exceeding 2 degrees of proof so long as such a liquor may, under the laws relating to excise, be sold without an excise licence ;

“bar” includes any place exclusively or mainly used for the sale and consumption of alcoholic liquor ;

“Commissioners” means Commissioners of Customs and Excise ;

1967 c. 77.

“constable” means a constable of a police force maintained under the Police (Scotland) Act 1967 ;

“contravene” includes fail to comply with, and “contravention” has a corresponding meaning ;

1968 c. 16.

“development corporation” has the same meaning as in the New Towns (Scotland) Act 1968 ;

“enactment” includes any order, rule, regulation or other instrument made under an Act of Parliament ;

1947 c. 41.

“fire authority” has the same meaning as in section 38 of the Fire Services Act 1947 ;

“grant”, in relation to a licence, includes a grant by way of renewal, and “granting” and “application” shall be construed accordingly ;

“hawking” means trafficking in or about the streets, highways or other places or in or from any boat or other vessel on the water ;

“hotel” means—

(a) in towns and the suburbs thereof, a house containing at least four apartments set apart exclusively for the sleeping accommodation of travellers ;

(b) in rural districts and populous places not exceeding 1,000 inhabitants according to the census for the time being last taken, a house containing at least two such apartments ;

"licence" means a licence granted under this Act other than under Part III of this Act ; PART VIII

"licence-holder" and **"holder of a licence"** mean the holder of a licence under this Act other than under Part III of this Act ;

"licensed canteen" means a seaman's canteen in respect of which a licence under Part III of this Act is in force ;

"licensed premises" means premises in respect of which a licence under this Act is in force other than under Part III of this Act ;

"licensing area" means any area for which there is a separate licensing board ;

"licensing board" means a licensing board constituted under section 1 of this Act ;

"made-wine" means made-wine within the meaning of the Customs and Excise Act 1952 ; 1952 c. 44.

"new licence" means a licence granted in respect of premises for which, at the time of the application for such grant, either no licence was in force or a licence in a form different from the form of licence so granted was in force :

Provided that a licence granted in respect of premises which have been rebuilt after having been destroyed by fire, tempest or other unforeseen cause, and for which, at the time when they were so destroyed, a licence in the same form as the first-mentioned licence was in force, shall be deemed not to be a new licence ;

"off-sale premises" means premises in respect of which an off-sale licence under this Act is in force ;

"permitted hours" means the hours during which by virtue of this Act alcoholic liquor may be sold, supplied or consumed in licensed premises ;

"prescribed" means prescribed by regulations made under section 37 of this Act ;

"public house" includes an inn, ale-house, victualling house or other premises in which alcoholic liquor is sold by retail for consumption either on or off the premises ;

"registered club" means a club in respect of which a certificate of registration under Part VII of this Act is in force, and **"unregistered club"** shall be construed accordingly ;

"table meal" means a meal eaten by a person sitting at a table, or at a counter or other structure which serves the purpose of a table and is not used for the service

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of refreshments for consumption by persons not seated at a table or structure serving the purpose of a table ;

“trafficking” means bartering, selling, dealing in, trading in, or exposing or offering for sale, by retail ;

“wholesaler’s excise licence” means an excise licence to deal wholesale in alcoholic liquor, granted under section 146 of the Customs and Excise Act 1952 ;

“wine” means wine within the meaning of the Customs and Excise Act 1952.

1952 c. 44.

(2) References in this Act to a bar counter in any premises shall not include references to a counter in such premises which is bona fide used, or intended to be used,—

(a) as a place at which meals are served to persons sitting thereat and at which alcoholic liquor is supplied to persons taking such meals for consumption by such a person while seated at such counter and as an ancillary to his meal ; or

(b) as a place at which alcoholic liquor is dispensed to the holder of a licence in respect of the premises or any servant or agent of his, but to no other person, and is so dispensed in order that it may be supplied to persons frequenting the premises ; or

(c) for both of the purposes mentioned in the two foregoing paragraphs ;

and for no other purpose.

(3) For the purposes of this Act, a person shall be treated as residing in any premises, notwithstanding that he occupies sleeping accommodation in a separate building, if he is provided with that accommodation in the course of a business of providing board and lodging for reward at those premises and the building is habitually used for the purpose by way of annex or overflow in connection with those premises and is occupied and managed with those premises.

(4) Unless the context otherwise requires, any reference in this Act to any other enactment is a reference thereto as amended, extended or applied by or under any other enactment, including this Act.

Transitional provisions.

140.—(1) Between the time when sections 8, 53, 57, 58, 60 and 131(5) come into force and 1st July 1977, those provisions shall have effect as if the references to a licensing board and to a licence were references to a licensing court and to a certificate.

1962 c. 51.

(2) Any order made under section 5 of the Licensing (Scotland) Act 1962 shall continue to have effect as if made under

section 56 of this Act, and, where section 6 or 8 of the said Act of 1962 or section 126 of the Licensing (Scotland) Act 1959 applies to any premises, the corresponding provision of this Act, that is to say, section 57 or 58 of this Act, as the case may be, shall apply to those premises. PART VIII
1959 c. 51.

(3) Committees for new towns constituted under section 74 of the Licensing (Scotland) Act 1959 shall continue as if constituted under section 47 of this Act.

(4) A certificate of registration granted in respect of any club under Part XI of the said Act of 1959 shall remain in force for a period of three years from the date of issue and shall have effect as if granted under Part VII of this Act.

(5) A special permission granted under section 60 of the said Act of 1959 shall have effect in relation to occasions on or after 1st July 1977 as if that Act were still in force.

(6) Nothing in section 136(2) of this Act shall affect any order, requirement, rule, regulation or byelaw made, direction given or any thing done under any enactment repealed by this Act; but any such order, requirement, rule, regulation, byelaw, direction or thing shall, so far as it has effect immediately before the repeal, continue to have effect, and, so far as it could have been made, given or done under the corresponding provision of this Act, have effect as if it had been made, given or done under that corresponding provision.

(7) Any document referring to an enactment repealed by this Act shall be construed as referring to the corresponding provision of this Act.

(8) The mention of particular matters in this section shall not affect the general application to this Act of section 38 of the Interpretation Act 1889 (which relates to the effect of repeals). 1889 c. 63.

141.—(1) This Act may be cited as the Licensing (Scotland) Act 1976 and extends to Scotland only. Short title
extent and
commence-
ment.

(2) Sections 131 and 140(1) of this Act and this section shall come into force on the passing of this Act, and the other provisions of this Act shall come into force on the appointed day, being such day as the Secretary of State may by order made by statutory instrument appoint; and different days may be appointed under this subsection for different provisions of this Act or for different purposes, or for the purposes of the same provision in relation to different cases.

(3) Any reference in this Act to the commencement of any provision thereof shall be construed as a reference to the day when that provision comes into force.

SCHEDULES

Section 9.

SCHEDULE 1

TYPES OF LICENCE

Public house licence

A public house licence is a licence granted in respect of a public house specified therein which authorises the holder thereof to sell by retail alcoholic liquor for consumption on or off the premises.

Off-sale licence

An off-sale licence is a licence granted in respect of premises specified therein which authorises the holder thereof to sell by retail alcoholic liquor for consumption off the premises only.

Hotel licence

A hotel licence is a licence granted in respect of a hotel specified therein which authorises the holder thereof to sell by retail alcoholic liquor for consumption on or off the premises.

Restricted hotel licence

A restricted hotel licence is a licence which—

(a) is granted in respect of a hotel specified therein which—

(i) is structurally adapted and bona fide used, or intended to be used, for the purpose of habitually providing the customary main meal at midday or in the evening or both for the accommodation of persons frequenting the premises of such hotel ;

(ii) so far as it is used or intended to be used for the purpose of providing meals to persons who are not residing there, is principally used, or intended to be used, for providing the customary main meal at midday or in the evening or both ; and

(iii) does not contain a bar counter ; and

(b) authorises the holder thereof—

(i) to sell by retail or supply alcoholic liquor in the said premises to persons taking table meals there, for consumption by such a person as an ancillary to his meal ;

(ii) to sell by retail or supply alcoholic liquor in those premises to persons residing there, for consumption on the premises by such a person or by a private friend of such a person who is bona fide entertained by and at the expense of that person :

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(iii) to supply alcoholic liquor in those premises to any private friends of a person residing there who are bona fide entertained by and at the expense of that person for consumption on the premises by such a friend entertained as aforesaid ; and

(iv) to sell or supply alcoholic liquor in those premises to persons residing there, for consumption by such a person or by a private friend of such a person who is bona fide entertained by, and at the expense of, that person as an ancillary to a meal supplied at, but to be consumed off, the premises ; or

(v) if the application is made in that behalf, to sell or supply alcoholic liquor only as described in sub-paragraphs (ii) to (iv) above.

Restaurant licence

A restaurant licence is a licence granted in respect of premises specified therein which—

(a) is granted in respect of premises which—

(i) are structurally adapted and bona fide used, or intended to be used, for the purpose of habitually providing meals for the accommodation of persons frequenting the premises ;

(ii) so far as they are used, or intended to be used, for the said purpose, are principally to be used, or intended to be used, for providing the customary main meal at midday or in the evening, or both ; and

(iii) do not contain a bar counter ; and

(b) authorises the holder thereof to sell by retail or supply alcoholic liquor in the said premises to persons taking table meals there, for consumption by such a person as an ancillary to his meal.

Refreshment Licence

A refreshment licence is a licence granted in respect of premises specified therein which—

(a) is granted in respect of premises which—

(i) are structurally adapted and bona fide used or intended to be used for the provision of refreshments, including food and non-alcoholic beverages for consumption on the premises ; and

(ii) do not contain a bar counter ; and

(b) authorises the holder thereof to sell by retail or supply alcoholic liquor for consumption on the premises when food and non-alcoholic beverages are also on sale, provided that no alcoholic liquor is sold or supplied for consumption off the premises.

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Entertainment Licence

An entertainment licence is a licence granted in respect of premises specified therein, being places of public entertainment such as cinemas, theatres, dance halls and proprietary clubs, which authorises the holder thereof to sell by retail or supply alcoholic liquor to persons frequenting the premises for consumption on the premises as an ancillary to the entertainment provided, subject to such conditions as the licensing board may determine to ensure that such sale or supply is ancillary to the entertainment provided.

Sections 41
and 43.

SCHEDULE 2

SEAMEN'S CANTEENS

GRANT AND TRANSFER OF LICENCES UNDER PART III
OF THIS ACT

PART I

Applications for grant of licences

1.—(1) The applicant for the grant of a licence under Part III of this Act shall, not less than five weeks before the hearing of the application, give notice in writing of the application to the chief constable and the clerk of the licensing board and serve both of them with a copy of—

- (i) the certificate of the Secretary of State,
- (ii) the draft rules which it is proposed to make as respects the persons entitled to use the canteen,
- (iii) a plan of the canteen and particulars of the access to the canteen and of the sanitary accommodation for persons using the canteen.

(2) The clerk of the licensing board shall, not later than three weeks before the hearing of the application, cause to be published notice of the application in one or more newspapers circulating in the licensing area.

(3) A notice under this paragraph shall state the name and address of the person who is to be the holder of the licence, the types of alcoholic liquor it is desired to sell under the licence, and the situation of the canteen.

2. Where an applicant has, through inadvertence or misadventure, failed to comply with the foregoing paragraph, the licensing board may, upon such terms as it thinks fit, postpone consideration of the application and, if upon any such postponed consideration it is satisfied that any terms so imposed have been complied with, may deal with the application as if that paragraph had been complied with.

PART II

SCH. 2

Application for and grant of provisional licences

3. The provisions of Part III of this Act relating to the grant of a licence, and the foregoing provisions of this Schedule, shall apply in relation to the grant of a provisional licence subject to the modifications specified in this Part of this Schedule.

4.—(1) A notice under paragraph 1 above need not state the name and address of the person who is to be the holder of the licence, and references in that paragraph to the canteen shall be taken as references to the proposed canteen after the construction or conversion has been carried out.

(2) Paragraph (a) of section 41(1) of this Act shall be omitted, and the reference in paragraph (b) of that subsection to the premises shall be taken as a reference to those premises when the construction or conversion has been carried out.

5.—(1) A provisional licence shall not come into force until the licensing board has made it final.

(2) The licensing board shall not refuse an application to declare a provisional licence final, except, subject to sub-paragraph (3) below, on either or both of the following grounds—

(a) that the canteen has not been constructed or converted in accordance with the plan lodged with the licensing board ;

(b) that the person to whom the licence is to be granted is disqualified by or under this or any other enactment from holding a licence or is in other respects not a fit and proper person to hold a licence under Part III of this Act.

(3) A licensing board shall declare final a provisional licence notwithstanding that it is not satisfied that the premises have been completed in accordance with the plan thereof lodged with the board, if it is satisfied that the premises have been completed and that the deviations from the said plan are of minor importance and have not materially altered the character of the premises or the facilities for the supply of alcoholic liquor thereat.

(4) An applicant under this paragraph shall give such notices as the licensing board may require.

PART III*Application for transfer*

6.—(1) A person applying to the licensing board for the transfer of a licence under Part III of this Act shall, not less than two weeks before the meeting of the board, give notice in writing to the chief constable.

(2) A notice under this paragraph shall state the name and address of the person to whom the licence is proposed to be transferred and his occupation during the six months preceding the giving of the notice.

7. Paragraph 2 above shall apply in relation to paragraph 6 above as it applies in relation to paragraph 1 above.

Section 47.

SCHEDULE 3**COMMITTEE FOR NEW TOWN**

1. A committee constituted under section 47 of this Act shall consist of—

- (a) a chairman appointed by the Secretary of State as being an independent person ;
- (b) members appointed by the development corporation for the new town for which the committee are constituted or, if the committee are constituted for more than one new town, by the development corporations for each of the new towns in such proportions as the Secretary of State may by order specify ;
- (c) members appointed from among their number by the licensing board for the licensing area in which is situated the area for which the committee are constituted or, if the last-mentioned area is situated in more than one licensing area, by the licensing board for each of those licensing areas in such proportions as the Secretary of State may by order specify :

Provided that, where the area for which the committee are constituted comprises part only of a licensing area, and it appears to the Secretary of State that, by reason of the small extent of that part of the licensing area and, having regard to its nature, the licensing board has insufficient interest in the working of the committee to justify its representation on it, it shall not be necessary for the committee to include any member of the licensing board for that licensing area.

2. The members of a committee appointed under sub-paragraphs (b) and (c) of paragraph 1 above shall be equal in number ; but except as aforesaid, the number of members shall be determined by order of the Secretary of State.

3. The appointment of a member of any such committee shall be for such term, not exceeding four years, as may be determined by or under an order of the Secretary of State, with or without eligibility for re-appointment, as may be so determined, and shall be subject to such conditions as may be so determined.

4. The quorum of any such committee shall be such as the Secretary of State may by order determine.

5. If the votes are equal on any question, the chairman shall have a casting vote ; but except as aforesaid, the chairman shall not vote.

6. Subject to the provisions of paragraphs 4 and 5 above, the procedure of any such committee shall be such as the committee may determine.

SCHEDULE 4

Section 53.

SUNDAY OPENING OF PREMISES IN RESPECT OF WHICH A PUBLIC HOUSE LICENCE OR REFRESHMENT LICENCE IS OR WILL BE IN FORCE AND SUNDAY RESTRICTION ORDERS RELATING TO LICENSED PREMISES

PART I*Applications for Sunday opening*

1. Applications may be made to a licensing board in accordance with the provisions of this Schedule for permission to open premises on Sundays as mentioned in section 53(2) of this Act, and any such application is referred to in this Schedule as "an application for Sunday opening".

2. The holder of a public house licence or a refreshment licence in respect of any premises may make an application for Sunday opening of the premises, and any such application shall be in such form as may be prescribed, shall be completed and signed by the applicant or his agent and shall be lodged with the clerk of the licensing board within whose area the premises are situated not later than five weeks before the first day of the meeting of the board at which the application is to be considered.

3. The clerk of a licensing board shall, not later than three weeks before the first day of the meeting of the board at which the applications are to be considered, cause to be published in one or more newspapers circulating in the area of the board a list of all competent applications for Sunday opening made to the board under paragraph 2 above.

4. The list mentioned in paragraph 3 above shall specify—

- (a) the name, designation and address of the applicant;
- (b) the address of the premises in respect of which the application is made;
- (c) the first day of the meeting of the licensing board at which the application is to be considered.

5. Section 10(2)(b) and section 10(5) of this Act shall, with any necessary modifications, apply in relation to an application for Sunday opening as they apply in relation to an application for the grant of a new licence.

6. It shall be competent for any person mentioned in section 16(1) of this Act to object in relation to any application made under paragraph 2 above, and the provisions of subsections (2) to (4) of that section shall apply in relation to such objections.

7. A licensing board shall refuse an application made under paragraph 2 above if it is satisfied that the opening and use on a Sunday of the premises to which the application relates would cause undue disturbance or public nuisance in the locality, but otherwise shall grant the application.

SCH. 4

8. The consequence of the refusal of an application under paragraph 7 above in respect of any premises is that, except as otherwise provided by this Act there shall be no permitted hours in those premises on a Sunday.

9. An applicant may appeal to the sheriff against a decision of a licensing board to refuse an application under paragraph 7 above.

10. Any competent objector who appeared at the hearing of any application made under paragraph 2 above may appeal to the sheriff against a decision of the licensing board to grant the application.

11. A licensing board shall not within two years of its refusal of an application made under paragraph 2 above in respect of any premises entertain another such application in respect of those premises.

12. An application for a new public house licence or refreshment licence under section 10 of this Act shall state whether the applicant is making an application for Sunday opening, and if an application for Sunday opening is made, the clerk of the licensing board shall include in the list mentioned in section 12(1) of this Act information to that effect.

13. An application for the renewal of a public house licence or refreshment licence under section 10 of this Act shall state whether the applicant is making an application for Sunday opening.

14. Paragraphs 5 to 11 above shall apply in relation to an application for Sunday opening under paragraph 12 or 13 above as they apply in relation to an application for Sunday opening under paragraph 2 above.

15. The grant of an application for Sunday opening under paragraph 2 or 12 above shall come into effect on the making of the grant except that where there were objections at the hearing the grant shall not come into effect until—

(a) the time within which an appeal may be made has elapsed.
or

(b) where an appeal has been lodged, the appeal has been abandoned or determined in favour of the applicant for the grant.

16. The grant of an application for Sunday opening under paragraph 13 above shall come into effect on the renewal of the licence to which the application relates.

17. If an application for Sunday opening is made under paragraph 13 above any existing grant of such an application shall continue to have effect—

(a) until the first mentioned application is granted by the board ;

(b) if the first mentioned application is refused, until the time within which an appeal may be made has elapsed, or if

an appeal has been lodged, until the appeal has been abandoned or determined.

SCH. 4

18. The grant of an application for Sunday opening shall cease to have effect when the licence to which it relates ceases to have effect.

PART II

Sunday restriction orders

19. Where on a complaint being made to a licensing board by any person mentioned in section 16(1) of this Act, the board is satisfied that the use of licensed premises is the cause of undue disturbance or public nuisance having regard to the way of life in the community in the locality on a Sunday, the board may make an order (in this Part of this Schedule referred to as a "Sunday restriction order"), and the effect of the Sunday restriction order is that there shall be no permitted hours on Sunday for such period as may be specified in the order or that the permitted hours on Sunday shall be reduced by such a time and for such a period as may be so specified.

20. The provisions of subsections (4) to (6) of section 31 of this Act shall, with any necessary modifications, apply in relation to a Sunday restriction order as they apply in relation to the suspension of a licence.

21. The licensing board may make a Sunday restriction order in relation to individual premises or in relation to a group of premises in respect of which the same type of licence is held.

22. Subsections (4) to (8) of section 65 of this Act shall apply in relation to a Sunday restriction order as they apply in relation to a restriction order under that section.

Section 67.

SCHEDULE 5

PENALTIES FOR OFFENCES AGAINST PROVISIONS OF THIS ACT

1 Provision of this Act creating the offence	2 Rough description of offence	3 Whether licence-holder vicariously responsible	4 Whether licence-holder and premises liable to disqualification	5 Penalty
Section 2... ..	Interested person acting as member of licensing board.	—	—	£400
Section 7(3)	Clerk of licensing board acting for person in proceedings before board.	—	—	£400
Section 19(1)	Canvassing member of licensing board.	—	—	£100
Section 29(2)	Unlawful sale of spirits.	Yes	Yes	£400
Section 33(4) and (5) ...	Contravention of condition of occasional licence.	Yes	Yes	£100
Section 34(3)	Contravention of condition of occasional permission.	—	—	£100
Section 34(6)	Failure to ensure observance of provisions relating to conduct of licensed premises.	—	—	£100
Section 36(3)	Failing to comply with order to carry out structural alterations.	—	Yes	£50 and £5 for every day of default.

1 Provision of this Act creating the offence	2 Rough description of offence	3 Whether licence-holder vicariously responsible	4 Whether licence-holder and premises liable to disqualification	5 Penalty
Section 38(4)	Contravention of any byelaw or condition attached to licence.	Yes	Yes	£50
Section 41(1)	Selling unauthorised liquor in canteen.	Yes	Yes	£100
Section 41(3)	Failure to provide food etc. in canteen.	Yes	Yes	£100
Section 50(6)	Breach of condition attached to licence.	Yes	Yes	£100
Section 54(1)(a)	Sale or supply of liquor in licensed premises or canteen or club out-with permitted hours.	Yes	Yes	£100
Section 54(1)(b)	Consuming liquor in licensed premises or canteen or club out-with permitted hours.	—	—	£50
Section 57(7)	Failure of club secretary to notify licensing board of alterations to premises with extended afternoon hours.	—	—	£50
Section 57(8)	Failure to display notice of extended afternoon hours.	—	—	£20

1 Provision of this Act creating the offence	2 Rough description of offence	3 Whether licence-holder vicariously responsible	4 Whether licence-holder and premises liable to disqualification	5 Penalty
Section 58(7)	Failure of club secretary to notify licensing board of alterations to premises with extended evening hours.	—	—	£50
Section 58(8)	Failure to display notice of extended evening hours.	—	—	£20
Section 59(7)	Failure to display notice in public house of permitted hours on Sunday.	—	—	£20
Section 64(6)	Contravention of condition of grant of an extension of permitted hours.	Yes	Yes	£100
Section 68(1)	Selling liquor to, or allowing consumption by persons under 18 in a bar.	Yes	Yes	£50
Section 68(2)	Purchase of liquor in licensed premises, or consumption of liquor in a bar, by person under 18.	—	—	£100

1 Provision of this Act creating the offence	2 Rough description of offence	3 Whether licence-holder vicariously responsible	4 Whether licence-holder and premises liable to disqualification	5 Penalty
Section 68(3)	Acting as agent for person under 18 in purchase of liquor or purchasing liquor for person under 18 or purchasing liquor for person under 18 to consume in a bar.	—	—	£100
Section 68(5)	Delivering liquor to a person under 18.	Yes	Yes	£50
Section 69(1)	Permitting person under 14 in a bar or canteen during permitted hours.	Yes	Yes	£50
Section 69(2)	Bringing person under 14 into a bar during permitted hours.	—	—	£100
Section 70(1)	Permitting unaccompanied person under 14 in premises with refreshment licence during permitted hours.	Yes	Yes	£50
Section 70(1)	Permitting person under 14 to remain in premises with refreshment licence after 8 p.m.	Yes	Yes	£50

1 Provision of this Act creating the offence	2 Rough description of offence	3 Whether licence-holder vicariously responsible	4 Whether licence-holder and premises liable to disqualification	5 Penalty
Section 72(1)	Employing person under 18 in bar or canteen during permitted hours.	Yes	Yes	£100
Section 73(1)	Employing person under 18 to serve liquor in premises with refreshment licence.	Yes	Yes	£100
Section 74(1)	Entering licensed premises while drunk.	—	—	£20
Section 74(2)	Being in licensed premises while drunk.	—	—	£20
Section 75(1)	Procuring liquor in licensed prem- ises for drunken person.	—	—	£100
Section 75(2)	Aiding a drunken person to obtain liquor.	—	—	£100
Section 76	Sale or supply of liquor to drunken person.	Yes	Yes	£50
Section 77	Licence holder or employee or agent drunk in licensed premises or canteen.	Yes	Yes	£100
Section 78(1)(a)... ..	Behaving in disorderly manner in licensed premises or canteen.	—	—	£100 and/or imprison- ment for 60 days.

1 Provision of this Act creating the offence	2 Rough description of offence	3 Whether licence-holder vicariously responsible	4 Whether licence-holder and premises liable to disqualification	5 Penalty
Section 78(1)(b)... ..	Using obscene language in licensed premises or canteen.	—	—	£100
Section 78(2)	Permitting breach of the peace, drunkenness, or riotous or disorderly conduct in licensed premises or canteen.	Yes	Yes	£50
Section 79(1)(a) or (b) ...	Refusing to leave licensed premises or canteen.	—	—	£20
Section 80	Permitting thieves, prostitutes, etc., or stolen goods in licensed premises.	Yes	Yes	£100
Section 81	Permitting unlawful games in licensed premises.	Yes	Yes	£50
Section 82	Drinking in premises where liquor sold without a licence.	—	—	£20
Section 83(1)	Consuming liquor in unlicensed places of public refreshment when public house closed.	—	—	£50
Section 83(2)	Permitting consumption of liquor outwith permitted hours in unlicensed places of public refreshment.	—	—	£50

1 Provision of this Act creating the offence	2 Rough description of offence	3 Whether licence-holder vicariously responsible	4 Whether licence-holder and premises liable to disqualification	5 Penalty
Section 84	Permitting a constable on duty to remain on the premises or supplying him with liquor.	Yes	Yes	£50
Section 85	Refusing to admit a constable to licensed premises or canteen for the execution of his duty.	Yes	Yes	£50
Section 86	Refusing to admit a constable or obstructing his entry to un-licensed premises.	—	—	£50
Section 87(1)(a)	Selling or supplying liquor on credit in licensed premises other than hotel or restaurant licensed premises or in club or canteen.	Yes	Yes	£50
Section 87(1)(b)	Consuming liquor on credit in licensed premises other than hotel or restaurant licensed premises or in club or canteen.	—	—	£50
Section 88	Selling fraudulently adulterated food or drink.	Yes	Yes	£100
Section 89	Failing to close on order of sheriff or licensing board.	Yes	Yes	£50

1 Provision of this Act creating the offence	2 Rough description of offence	3 Whether licence-holder vicariously responsible	4 Whether licence-holder and premises liable to disqualification	5 Penalty
Section 90(a)	Trafficking in liquor without a licence.	—	—	£400
Section 90(b)	Bartering or selling spirits without a licence.	—	—	£400
Section 90(c)	Hawking alcoholic liquor.	Yes	Yes	£100
Section 91(1)(a) or (b) ...	Delivery of liquor from vehicles without proper entries in day book and invoice.	Yes	Yes	£100
Section 91(2)	Carrying or delivering liquor in vehicles without entries in day book and invoice.	Yes	Yes	£100
Section 91(3)	Refusing to allow a constable to examine vehicle delivering liquor, or to examine day book and/or invoice.	Yes	Yes	£100
Section 92(1)	Permitting liquor in crates on public service vehicle.	—	—	£100 for public service vehicle licence-holder. £20 for any other person.
Section 92(2)	Procuring or attempting to procure contravention of subsection (1).	—	—	£20
Section 93	Sale of liquor on passenger vessels outwith Sunday permitted hours.	—	—	£100

1 Provision of this Act creating the offence	2 Rough description of offence	3 Whether licence-holder vicariously responsible	4 Whether licence-holder and premises liable to disqualification	5 Penalty
Section 94(1) ...	Wholesaler permitting breach of the peace on the premises.	—	—	£100
Section 94(1) ...	Wholesaler selling liquor to drunk persons, or selling liquor on Sundays.	—	—	£100
Section 95 ...	Sale or supply of liquor for consumption outside registered club by non-members.	—	—	£100
Section 96(a) ...	Sale or supply of liquor in licensed canteens for consumption off the premises.	Yes	Yes	£100
Section 96(b) ...	Taking liquor from licensed canteen for consumption off the premises.	—	—	£100
Section 97(1) ...	Permitting consumption of liquor on off-sale licensed premises.	Yes	Yes	£100
Section 97(2) ...	Consuming liquor on off-sale licensed premises.	—	—	£50
Section 97(3) ...	Taking liquor from off-sale premises for sale.	Yes	Yes	£10

1 Provision of this Act creating the offence	2 Rough description of offence	3 Whether licence-holder vicariously responsible	4 Whether licence-holder and premises liable to disqualification	5 Penalty
Section 97(4)	Selling liquor in open vessels on off-sale licensed premises.	Yes	Yes	£100
Section 98(1)	Selling or supplying liquor other than to residents and/or with table meals in premises with restricted hotel licence.	Yes	Yes	£100
Section 98(2)	Trafficking in or supplying liquor, except to residents, for consumption off premises subject to restricted hotel licence.	Yes	Yes	£100
Section 99(a)	Selling or supplying liquor in premises subject to restaurant licence except with meals.	Yes	Yes	£100
Section 99(b)	Trafficking in or supplying liquor for consumption off premises subject to restaurant licence.	Yes	Yes	£100
Section 100(a)	Trafficking in or selling liquor for consumption off premises subject to refreshment licence.	Yes	Yes	£50

1 Provision of this Act creating the offence	2 Rough description of offence	3 Whether licence-holder vicariously responsible	4 Whether licence-holder and premises liable to disqualification	5 Penalty
Section 100(b)	Selling liquor in premises subject to refreshment licence when other refreshments are not for sale.	Yes	Yes	£50
Section 101(1)	Trafficking in or supplying liquor for consumption off premises subject to entertainment licence.	Yes	Yes	£50
Section 101(2)	Contravention of conditions attached to entertainment licence.	Yes	Yes	£50
Section 103	Making false statement in application for certificate of registration of club.	—	—	£400
Section 111	Conducting club in manner giving rise to objections mentioned in paragraph (f), (i), (j) or (l) of section 108 of this Act.	—	—	£100
Section 112(1)	Permitting person under 14 in bar of registered club during permitted hours.	—	—	£50

1 Provision of this Act creating the offence	2 Rough description of offence	3 Whether licence-holder vicariously responsible	4 Whether licence-holder and premises liable to disqualification	5 Penalty
Section 112(3)	Causing person under 14 to be in bar of registered club during permitted hours.	—	—	£50
Section 113	Employing person under 18 in bar of club to serve liquor.	—	—	£100
Section 114(2)	Refusing to give name and address or giving false name or address to constable in a registered club.	—	—	£50
Section 119	Selling liquor on off-sale premises outwith permitted hours or contravening condition of an off-sale licence.	Yes	Yes	£100
Section 120(1)	Selling or supplying liquor in unregistered club.	—	—	£100
Section 120(1)	Paying for liquor supplied in unregistered club.	—	—	£100
Section 120(2)	Keeping liquor for sale or supply in unregistered club.	—	—	£100

SCH. 5

1 Provision of this Act creating the offence	2 Rough description of offence	3 Whether licence-holder vicariously responsible	4 Whether licence-holder and premises liable to disqualification	5 Penalty
Section 120(7)	Refusing to give name and address to constable in unregistered club.	—	—	£20
Section 123(2)	Selling confectionery containing alcoholic liquor to person under 16.	—	—	£50

SCHEDULE 6

Sections 103
and 105.

FORMS RELATING TO REGISTRATION OF CLUBS

1

Form of statement to accompany application by club for grant or renewal of certificate of registration

We, *[here state names and qualifications for making statement]* *[where necessary add and I,*

owner of the premises to be occupied *[or occupied]* by the club hereinafter mentioned] hereby certify that to the best of our knowledge and belief the

club designated in the accompanying application is to be *[or, in the case of an application by an existing club, has been and is to be]* continued as a *bona fide* club, and not mainly for the supply of alcoholic liquor.

[Signature, date and address of each person certifying, to be here inserted.]

2

Form of certificate of registration of clubs to be granted under this Act

Certificate of Registration

I, , sheriff clerk of

, registrar of clubs, hereby certify that
club of *[here insert registered postal address of all premises used by the club]* is registered under the Licensing (Scotland) Act 1976. This certificate shall remain in force until the day of 19 ;
application for its renewal must be made not later than the
day of , 19 .

Given under my hand this day of , 19 .

Registrar of Clubs.

SCHEDULE 7

Section 136.

MINOR AND CONSEQUENTIAL AMENDMENT OF ENACTMENTS

The Burgh Police (Scotland) Act 1892

1892 c. 55.

1. In section 380(4) (penalties), for the word "exciseable" there shall be substituted the word "alcoholic".

2. In section 440 (brokers not to carry on business as publicans), for the word "exciseable" there shall be substituted the word "alcoholic".

SCH. 7

1952 c. 44.

The Customs and Excise Act 1952

3. In section 307 (interpretation), for paragraph (b) of the definition of "justices' licence" and "justices' on-licence" there shall be substituted the following paragraph—

"(b) in the application of this Act to Scotland, mean respectively—

(i) a licence granted under Part II of the Licensing (Scotland) Act 1976 ; and

(ii) any such licence as aforesaid other than an off-sale licence as described in Schedule 1 to that Act ;
and in this paragraph any reference to a licence granted under Part II of the said Act of 1976 includes a reference to an occasional licence granted under the said Part II to the holder of such a licence, a reference to a licence granted under Part III of that Act (which relates to seamen's canteens) and a reference to an extension of permitted hours granted under Part V of that Act ;".

4. In section 315 (application to Scotland), in paragraph (c), for the words "exciseable liquor" there shall be substituted the words "alcoholic liquor as defined in section 139 of the Licensing (Scotland) Act 1976", and for paragraph (d) there shall be substituted the following paragraph—

"(d) any reference to licensed premises in relation to the sale of intoxicating liquor shall be construed as a reference to premises in respect of which a licence for the sale of alcoholic liquor granted under the Licensing (Scotland) Act 1976 is in force ;".

1967 c. 54.

The Finance Act 1967

5. In section 5(3) (abolition of club licences, etc.), for the word "1959" there shall be substituted the word "1976".

1967 c. 86.

Countryside (Scotland) Act 1967

6. In section 78(1) (interpretation), for the definition of "refreshments" there shall be substituted the following definition—

" "refreshments" includes alcoholic liquor within the meaning of the Licensing (Scotland) Act 1976 ;".

1968 c. 16.

The New Towns (Scotland) Act 1968

7. In section 18(2) (disposal of land by development corporation), for the words "exciseable liquor" there shall be substituted the words "alcoholic liquor".

8. In section 47(1) (interpretation), after the definition of "the Act of 1845" there shall be inserted the following definition—

" "alcoholic liquor" has the meaning assigned by section 139(1) of the Licensing (Scotland) Act 1976 ;".

1968 c. 65.

The Gaming Act 1968

9. In section 6 (general provisions as to gaming in licensed premises), the following amendments shall be made—

(a) in subsection (2)(a), for the word "certificate", in both places where it occurs, there shall be substituted the word "licence" ;

- (b) in subsection (3), the words "or certificate" shall be omitted, and for the word "court" there shall be substituted the word "board";
- (c) in subsection (4), for the word "court", in both places where it occurs, there shall be substituted the word "board";
- (d) in subsection (5), for the word "court", in both places where it occurs, there shall be substituted the word "board";
- (e) in subsection (6), for the word "court" there shall be substituted the word "board", and the words "or certificate", in both places where they occur, shall be omitted;
- (f) in subsection (8), for the words after "1964" there shall be substituted the words "and "hotel licence"; "public house licence" and "licensing area" have the same meanings as in the Licensing (Scotland) Act 1976."

SCH. 7

10. In section 7(2) (provisions as to persons under 18), the words "or certificate" shall be omitted.

11. In section 8(7) (offences), for the words "subsection (7) of section 14 of the Licensing (Scotland) Act 1962" there shall be substituted the words "Schedule 5 to the Licensing (Scotland) Act 1976", and for the words "the said section 14" there shall be substituted the words "section 67 of the said Act of 1976".

12. In paragraph 23 of Schedule 9 (permits under section 34), for the words from "hotel" onwards there shall be substituted the words "public house licence" and "hotel licence" have the same meanings as in Schedule 1 to the Licensing (Scotland) Act 1976."

SCHEDULE 8

Section 136.

REPEALS

Chapter	Short Title	Extent of Repeal
61 & 62 Vict. c. 60.	The Inebriates Act 1898.	In section 30, the words "the Licensing (Scotland) Act 1959, section 160".
7 & 8 Eliz. 2. c. 51.	The Licensing (Scotland) Act 1959.	The whole Act.
10 & 11 Eliz. 2. c. 51.	The Licensing (Scotland) Act 1962.	The whole Act.
10 & 11 Eliz. 2. c. 52.	The Penalties for Drunkenness Act 1962.	In section 1(2), the words "section 152 of the Licensing (Scotland) Act 1959" and the words "sections 153 and 154 of the Licensing (Scotland) Act 1959".
1963 c. 2.	The Betting, Gaming and Lotteries Act 1963.	In Schedule 1, paragraph 24(2).
1967 c. 14.	The Licensing (Certificates in Suspense) (Scotland) Act 1967.	The whole Act.
1967 c. 54.	The Finance Act 1967.	Section 5(1)(d). Schedule 8.

SCH. 8

Chapter	Short title	Extent of repeal
1968 c. 16.	The New Towns (Scotland) Act 1968.	In section 47(1), the definition of "exciseable liquor".
1968 c. 65.	The Gaming Act 1968.	In section 6, in subsection (3), the words "or certificate", and, in subsection (6), the words "or certificate", where twice occurring. In section 7(2), the words "or certificate". In Schedule 2, paragraph 33(2) and (3) and paragraph 34(2). In Schedule 9, paragraph 17. The whole Act.
1971 c. 65.	The Licensing (Abolition of State Management) Act 1971.	
1973 c. 65.	The Local Government (Scotland) Act 1973.	Section 91(6). Sections 185 and 186. Part 1 of Schedule 24.
1975 c. 20.	The District Courts (Scotland) Act 1975.	Section 10(5). Section 11(8). In section 13(1), the words "or (b) a licensing court or court of appeal for that area". Section 13(3). Section 17(2). Section 22. In section 26(1), the definitions of "licensing court" and "court of appeal". In Schedule 1, paragraph 28.